BY ORDER OF THE COMMANDER
35TH FIGHTER WING

35TH FIGHTER WING INSTRUCTION
31-218

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Security

MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements Air Force Instruction (AFI 31-218), Motor Vehicle Traffic Supervision, Department of Defense Instruction (DoDI) 6055.04, *DoD Traffic Safety Program*, Air Force Instruction (AFI) 91-207, *The US Air Force Traffic Safety Program*, Air Force Instruction (AFI) 31-115, *Law and Order Operations*, United States Forces Japan Instruction (USFJI) 31-203, *Law Enforcement Procedures in Japan*, and USFJI 31-205, *Motor Vehicle Operations and Traffic Supervision*. This instruction applies to all United States Armed Forces personnel (including active duty, reserve, cadets, midshipmen, and civilian) and their dependents in Japan, United States (US) official contractors and their employees under Article XIV, Status of Forces Agreement (SOFA), United Nations Command, Rear Liaison Officers visiting United States Forces Japan (USFJ) facilities, and both appropriated and non-appropriated fund civilians of US Forces, and such other activities, located in Japan at the invitation of USFJ. Further, this instruction, to the extent possible, applies to local and foreign nationals operating vehicles on Misawa Air Base (MAB). This instruction outlines procedures for granting, suspending, and revoking the privilege to operate a Privately Owned Vehicle (POV); registering a POV; maintaining driver performance records and driver improvement programs; enforcing installation traffic laws; and monitoring off-installation traffic activities. This instruction is the directive and the basis for motor vehicle operations on Misawa Air Base (MAB). Violations of this instruction are subject to disciplinary action. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Air Force. This instruction requires collecting and maintaining information protected by the Privacy Act of 1974 authorized by Title 10 U.S.C. 8013 citation and/or Executive Order 9397. Refer recommended changes and questions about this publication to the Office of Primary

Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS).

SUMMARY OF CHANGES

This document has been substantially revised and needs to be completely reviewed. Significant changes include: revised reporting procedures for on/off accidents; revised MTR 0068; revised of MTR 0069; addition of LRS towing support for snow removal operations; delegation of vehicle registration limit approving authority. Additionally, substantial administrative and readability changes have been made, to include clarifications.

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1. Program Overview.

1.1. Introduction. Driving on Misawa Air Base (MAB) is a privilege that can be taken away if abused. Too many drivers pose a danger to themselves and others on the road. It is the intent of this instruction to establish guidelines and procedures to mitigate these dangers.

1.2. Program Management. This instruction implements policy, assigned responsibility, and established procedures for motor vehicle operations and traffic supervision for MAB and assigned jurisdictional areas as outlined in United States Forces Japan Instruction (USFJI) 31-203, *Law Enforcement Procedures in Japan*. Further, penalties can be assessed for off-installation citations issued by Japanese Police if they have not been adjudicated by another United States Forces Japan (USFJ) law enforcement agency. This instruction includes and expansion on the contents of AFI 31-218(I), *Motor Vehicle Traffic Supervision*, and USFJI 31-205, *Motor Vehicle Operations and Traffic Supervision*. Please refer to these documents for additional instructions.

1.3. Authority. The provisions of this instruction are in compliance with AFI 31-218(I), AFI 91-207, *The US Air Force Traffic Safety Program*, USFJI 31- 203, and USFJI 31-205.

1.3.1. The 35th Security Forces Squadron Commander (35 SFS/CC) is the installation commander's principal advisor on issues pertaining to the lawful movement of personnel and traffic.

1.4. Delegation of Authority. The installation commander designates, through this instruction, the 35th Mission Support Group Commander (35 MSG/CC) as the authority for all traffic supervision matters, Status of Forces Agreement (SOFA) licensing issuing authority, suspension authority, revocation authority, approving authority for all limited driving requests, and approving authority for re-instatement of suspended or revoked licenses.

1.4.1. In accordance with USFJI 31-203, the 35th Fighter Wing (FW) area of responsibility includes the following prefectures of northern Japan: Aomori, Akita, Iwate, Miyagi, and Yamagata. The 35th Security Forces Squadron Pass and Registration (35 SFS/S5PR) office will be the focal point for all training and issuance of 4EJ Driver's Licenses, processing vehicle registration and deregistration requirements, and vehicle transfers for SOFA members assigned to MAB.

2. Driving Privileges.

2.1. Requirements for Driving Privilege. The installation commander grants the privilege of driving on MAB for United States (U.S.) Forces personnel and their dependents through the issuance of the US Forces Japan Operator's Permit for Civilian Vehicle (USFJ Form 4EJ), which allows personnel to operate a POV in Japan. Personnel must comply with the laws governing motor vehicle registration and operation both on and off the installation, or they may be required to forfeit the privilege of driving on the installation and maintaining a USFJ Form 4EJ. The installation commander has delegated the authority to suspend or revoke these driving privileges to the 35 MSG/CC. All personnel driving on MAB or SOFA members driving within 35 SFS jurisdiction (outlined in USFJI 31-203) must maintain and produce the following upon request from Security Forces or Japanese law enforcement officials:

2.1.1. Official DoD Identification Card or other appropriate identification for non-DoD civilians.

2.1.2. A valid USFJ Form 4EJ, *U.S. Forces, Japan Operator's Permit for Civilian Vehicle (PA)*, for the type of motor vehicle to be operated; or a valid Japan driver's license; or an International Driver's Permit recognized by Japan; or U.S. Embassy Driving Permit; or Government Owned Vehicle (GOV) license (or other documents IAW Figure 1 and 2 of USFJI 31-205). A current, valid state driver's license is required for all issuance and renewals of USFJ Form 4EJ (exceptions outlined in USFJI 31-205 apply).

2.1.2.1. A 35 FW Form 95EJ, *Local National Vehicle Registration,* is used as a vehicle pass for Japanese Nationals to include Indirect Hire Agreement (IHA), Master Labor Contractor (MLC), and contractor vehicles entering the installation.

2.1.2.2. AF Form 2293, *U.S. Air Force Motor Vehicle Operator Identification Card*, is utilized for operation of any GOV that seats 15 or more passengers, or is classified as a Special Utility Vehicle. Example of Special Utility Vehicles are Humvees (HMMV), Mine-Resistant Ambush Protected (MRAP), or any other special vehicles.

2.1.3. Military Registration and Certificate of Title of Motor Vehicle.

2.1.4. Valid/current Japanese Compulsory Insurance (JCI) and Property Damage Liability Insurance. Exception: liability insurance is not required for motorcycles during winter season as directed by the installation commander. Regardless of seasonal use, JCI is mandatory and must remain in effect at all times.

2.1.5. Current year USFJ Form 15A, Road Tax Decal (for use on 4-wheel vehicles) or USFJ Form 15B, Road Tax Decal (for use on 2-wheel vehicles), properly affixed to motor vehicle. Only the current year decal is authorized for display. Expired decals must be completely removed and destroyed.

2.1.5.1. The USFJ Road Tax Decal is not a vehicle pass. It cannot be used to grant vehicle access onto any U.S. Forces installation or facility. Service component commanders will ensure vehicle entry onto a USFJ installation is based on the authorized credentials of the motorist/passengers and not on a vehicle decal.

2.1.6. Non-SOFA retirees may be issued a one year vehicle pass or USFJ Road Tax Decal.

2.1.7. Valid Government of Japan vehicle registration certificate.

2.1.8. Annual Road Tax payment receipt.

2.2. USFJ Form 4EJ. The 35 SFS/S5PR office is responsible for providing driver safety training for all 35 FW or MAB assigned personnel requesting a USFJ Form 4EJ driving permit.

2.2.1. 35 SFS/S5PR will develop the Traffic Safety Course II and administer a test to all USFJ Form 4EJ applicants on familiarity, local conditions, road signs and hazards associated with driving in Japan. All required items for the local conditions course and test administered by 35 SFS/S5PR is outlined in USFJI 31-205. Additionally, applicants will comply with additional licensing testing (if applicable) as outlined in USFJI 31-205 and AFI 91-207.

2.2.2. 35 SFS/S5PR may issue USFJ Form 4EJs to United States Air Force personnel and/or affiliates having SOFA status under Article I of the SOFA (SOFA sponsored AAFES employees, DODEA employees, USAF contractors, and others affiliate with an approved Support Agreement with the 35 FW), DoD Contractor Common Access Card (CAC), military members CAC, DD Form 1173, *Uniformed Services Identification and Privilege Card* (dependent identification card), DoD civilian CAC, current stateside driver's license (exceptions outlined in USFJI 31-205), or International Driver's Permit recognized by Japan. Military members will also show proof of Date Estimated Return From Overseas (DEROS) date (via orders and/or Single Unit Retrieval Form (SURF). Dependents will show proof of DEROS via military members orders. Civilians and contractors will show proof of their DEROS by a Letter of Employment. If a member allows their USFJ Form 4EJ to expire for 30 or more days before being renewed, will be required to re-attend the Traffic Safety Course II and retake the examination or accomplish the Joint Knowledge Online (JKO) training, "Misawa Air Base Japan Drivers Course", prior to receiving a new USFJ Form 4EJ. The 35 SFS/S5PR office will maintain a database of all active USFJ Form 4EJ holders. Individuals newly assigned to Misawa Air Base with a current USFJ Form 4EJ will report to 35 SFS/PR within the first 5 duty days to receive Misawa USFJ Form 4EJ, as long as they meet the issuance standard mentioned in this regulation.

2.2.3. The minimum standards for obtaining a USFJ Form 4EJ are as follows:

2.2.3.1. The applicant must be covered under SOFA.

2.2.3.1.1. Applicants must present one of the following: a valid and current operator's permit issued by any state or territory of the US or by the District of Columbia; an international driver's permit recognized by the Government of Japan (GOJ); a valid GOJ operator's permit; or written proof that he or she has successfully completed a certified formal driving course.

2.2.3.2. In accordance with (IAW) USFJI 31-205, SOFA sponsored individuals who possess a current, valid operator's permit from one of the following countries may be issued a USFJ Form 4EJ, if consistent with service component guidance and with approval of the installation commander: Australia, Austria, Belgium, Canada, Czech Republic, Denmark, Finland, France, Germany, Greece, Iceland, Ireland, Italy, Luxembourg, Netherlands, New Zealand, Norway, Portugal, South Korea, Spain, Sweden, Switzerland, Taiwan, and the United Kingdom.

2.2.3.3. Members with an expired state license whose state does not permit extension while overseas, renewal by mail, etc. may be granted a one-time renewal waiver for USFJ Form 4EJ by the installation commander. The installation commander delegates this authority to the 35 SFS/CC. To be granted a waiver, the individual's driving record at MAB must be in good standing, not subject to suspension or revocation, and the individual must provide proof that they attempted and confirmed it is not possible to renew their state license while overseas. In addition, members must attest to the fact that their expired state-side driver's license has not been revoked, suspended, or

removed for cause. Applicants must have attended and passed the exam for the Traffic Safety Course II. Individuals who fail the exam are required to re-attend the Traffic Safety Course II, review Local Conditions, and re-take its examination. Members may also elect to take the Joint Knowledge Online (JKO) training, "Misawa Air Base Japan Drivers Course".

2.2.3.4. Exception: Personnel issued either a USFJ Form 4EJ from another installation or a Japanese driver's license are only required to attend the 4EJ Traffic Safety Course II; no test is required.

2.2.3.5. Motorcycle Endorsements on the USFJ Form 4EJ will only be given to individuals that provide 35 SFS/S5PR with his or her current Motorcycle Safety Foundation (MSF) card. If the member has a current MSF card issued from a location other than Japan, he/she will have to complete training for the appropriate motorcycle category in which they intend to operate. Riders will contact the 35th Fighter Wing Safety Office (35 FW/SE) for training guidance. The current year USFJ Form 15B decal will be issued to riders with current motorcycle documents (title, JCI and Liability Insurance, current MSF Card issued from MAB or current MSF Card with completed Memorandum from Fighter Wing Safety (35 FW/SE), USFJ Form 4EJ, Motorcycle Endorsement for Previously Trained Motorcycle Operators). Prior to endorsement, riders will provide a Misawa Air Base Motorcycle Training and Licensing Form signed by the respective unit commander to 35 SFS/S5PR, giving authorization to transport passengers.

2.2.3.5.1. The authorized riding season for motorcycles, mopeds, and or a three or four–wheel vehicle powered by a motorcycle–like engine is 1 April through 15 November. Individuals operating these vehicles outside this time frame will be cited IAW **Table A3.1**.

2.2.3.6. Drivers must be 18 years or older to operate a POV off the installation in Japan (*NOTE: Drivers with a student permit are not authorized to drive off base at any time, regardless of age). Minors who are 16 and 17 years old may be issued a permit "FOR ON-BASE USE ONLY" if they otherwise meet the requirements of this instruction. Minors are only authorized to transport immediate family members or one non-family member only. Minors without a valid and current operators permit may be eligible for a student driving permit, which is issued for a period of two weeks prior to the start of the formal driver education class. The student driving permit is only eligible for a one-time extension with a written memorandum from a formal driver education class instructor. If a student permit is expired for 30 or more days before being renewed, the individual will be required to re-attend Traffic Safety Course II and re-take the examination or take the Joint Knowledge Online (JKO) training, "Misawa Air Base Japan Drivers Course". A student driving permit allows minors to practice driving only on Falcon Loop and Security Hill Area, under parent or guardian supervision on base, while they complete a formal driver education class.

2.2.3.7. Temporary Duty (TDY) or Temporary Duty Assignment (TDA) personnel may receive driving privileges upon request from their local commander if they meet the following criteria:

2.2.3.7.1. Personnel performing a tour of less than 90 days may obtain USFJ Form 4EJ privileges upon request, and on a case by case basis, if they otherwise meet the requirements of this instruction and if mission requirements dictate. Applicants must attend and pass the exam for the Traffic Safety Course II.

2.2.3.7.2. Personnel who are TDY for less than 90 days may be authorized to drive a GOV for on-base use only with completion of Traffic Safety Course II, annotated on AF Form 483, *Certificate of Competency*.

2.2.3.7.3. Unit Vehicle Control Officers (VCO)/Vehicle Control Non-commissioned Officers (VCNCO) may administer the Traffic Safety Course II provided by 35 SFS/S5PR. An AF Form 483 will be issued marked "On-Base Only" by appropriate unit VCO/VCNCO.

2.2.3.7.4. Personnel performing a tour of 90 days or longer may obtain full driving privileges, upon request, if they otherwise meet the requirements of this instruction.

2.2.3.8. For situations involving a hardship for an assigned SOFA member, the installation commander (delegated to 35 MSG/CC) may approve on base driving of SOFA plated vehicles for non-SOFA family members, step-parents, or guardians who possess a valid license/permit recognized by Japan IAW USFJI 31-205. This special application and authorization letter (Attachment 2) should be granted based on reducing hardships imposed on members and/or their families as a result of illness, deployment(s), or extenuating circumstances. The request must be submitted three weeks before the arrival of non-SOFA personnel. Non-SOFA members must complete the same driving requirements as a SOFA member (i.e. Local Traffic Safety Course II), the approved request letter serves as the "USFJ 4EJ) and must be in the possession of the vehicle operator.

2.2.3.9. Non-SOFA retired personnel may operate a motor vehicle on MAB without a USFJ Form 4EJ. Retirees must be in possession of a current international or Japanese driver's license.

2.2.4. The USFJ Form 4EJ may be renewed when the requestor (with an expired state license) presents documentation that the state permits licenses to remain valid until return from overseas. The requirement to provide the aforementioned documentation is on the individual, not 35 SFS/S5PR.

2.2.5. Personnel who are in possession of a USFJ Form 4EJ that has been expired for 30 days or more must attend the Traffic Safety Course II and pass the exam before a new permit will be issued.

2.2.6. Personnel who do not possess a valid USFJ Form 4EJ will not be allowed to operate a vehicle, except as specified in this instruction.

2.2.7. Personnel who have physically lost their USFJ Form 4EJ will obtain written authorization (standard memo format) from their sponsor (or sponsor's) squadron commander, agency chief, or first sergeant before a replacement USFJ Form 4EJ will be reissued by the 35 SFS/S5PR office.

2.3. Stopping and Inspecting Personnel or Vehicles. IAW AFI 31-101, *Integrated Defense (ID)*, the installation commander is responsible for protecting personnel and property under his jurisdiction, and maintaining good order and discipline on the installation. Although not all inclusive, this is accomplished through aggressive programs such as:

2.3.1. Random Installation Entry/Exit Vehicle Check (RIEVC).

2.3.1.1. Installation commanders determine when, where, and how to implement random checks of vehicles based on the results from the Integrated Defense Risk Management Process (IDRMP) and through crime trend analysis. RIEVCs are random inspections directed and authorized by the installation commander or designee. The installation commander has delegated this authority to the 35 MSG/CC. RIEVC are inspections, not searches, and therefore the term "search" should never be used in conjunction with RIEVCs.

2.4. Implied Consent to Blood, Breath or Urine Test. Implied consent is a pre-condition for anyone operating a USFJ registered vehicle, GOV or POV, in Japan regardless of location IAW USFJI 31-205. This consent applies when lawfully detained, apprehended, or cited for any impaired or intoxicated driving offense committed while driving, or in physical control, of a motor vehicle, regardless of the intoxicated driving incident. Failure to take or complete a lawfully requested test is considered a refusal and will result in an immediate suspension or revocation of driving privileges.

2.5. Failure to Pass or Refusal to Take Blood, Breath, or Urine Test. If an individual subject to this instruction fails a test or refuses to take a test, their driver's license will be immediately confiscated for inclusion in the incident report IAW **paragraph 2.6.1.3** of this instruction. NOTE: Non-SOFA members will not have their license confiscated. However, they will still be issued a MAB driving suspension for 1 year.

2.6. Suspension or Revocation of Driving Privileges. IAW USFJI 31-205 para 2.3.1, the installation commander, or his or her designee, may suspend or revoke driving privileges and POV registration for reasons both related and unrelated to traffic offenses occurring on and off the installation. Suspension or revocation of installation driving and registration privileges is authorized for SOFA or non-SOFA military personnel, family members, DoD civilian employees, contractors, and other individuals with installation driving privileges. The installation commander delegates suspension and revocation of driving privileges to the 35 MSG/CC. The 35 MSG/CC may suspend or revoke driving privileges for serious violations.

2.6.1. Suspension for the purpose of this instruction is less than one year. Revocation for the purpose of this instruction is 1 year or longer.

2.6.1.1. Suspensions and revocations of driving privileges apply to all USFJ installations throughout Japan. Suspension and revocation applies to all motorized vehicles on and off base operated by SOFA status personnel. MAB will honor driving suspensions and revocations from other DoD Installations.

2.6.1.2. If not immediately confiscated, all Air Force issued USFJ Form 4EJs (active duty, dependent, and civilian) provided to drivers whose driving privileges are suspended or revoked will be surrendered to either their unit commander (or sponsor's unit commander), agency chief, or first sergeant. The USFJ Form 4EJ will then be turned over to the 35 SFS/S5RA office.

2.6.1.2.1. If "Restricted" driving privileges are granted, the newly issued USFJ Form 4EJ will be annotated in the remarks section indicating the limit of the specific privileges.

2.6.1.3. Security Forces personnel will immediately suspend or revoke driving privileges and confiscate driver's permits from individuals who have been apprehended or detained when evidence indicates the individual committed intoxicated driving or was Driving Under the Influence (DUI), refused to acknowledge the implied consent policy, or is apprehended/cited for reckless driving.

2.6.1.3.1. Licenses confiscated by 35 SFS will be attached to the report or ticket and will be maintained by 35 SFS/S5RA. If determination to reissue is made, a new license will be issued at 35 SFS/S5PR through a letter from the 35 MSG/CC.

2.6.1.4. Notification of suspension or revocation of driving privileges. Upon receiving an approved suspension or revocation package, 35 SFS/S5RA will notify the individual's commander, first sergeant, or equivalent.

2.6.1.4.1. The operator must report to 35 SFS/S5RA within 3 duty days to acknowledge the suspension/revocation. At this time, they may request an administrative hearing with the 35 Fighter Wing Vice Commander (35 FW/CV) through the 35 SFS/S5RA office. If the member accepts the suspension/revocation, they must surrender their USFJ Form 4EJ or 35 FW Form 98EJ, *Provisional Visitor/Vehicle Pass*, to the 35 SFS/S5RA. After acknowledgement of suspension/revocation, the member has 14 days to submit a request in writing for an administrative hearing.

2.6.1.4.2. Commanders or first sergeants will ensure the affected driver is notified immediately, and will instruct them to report to the 35 SFS/S5RA office to acknowledge the order. If the individual is TDY or on leave, the individual will report to 35 SFS/S5RA within 3 calendar days upon return to acknowledge the order. **NOTE:** Individuals will be entered into the Defense Biometric Identification System (DBIDS) and Air Force Justice Information System (AFJIS) to reflect the suspension/revocation action, and to ensure timely reporting.

2.6.1.4.3. Individuals who fail to report within the 3 duty day time frame are at risk of additional suspension revocation action if found to be in violation of the imposed action.

2.6.1.4.4. It is the responsibility of the unit commander and first sergeant to ensure the operator's GOV license is surrendered to the 35th Logistics Readiness Squadron Operator Records & Licensing (35 LRS/OR&L) office who will maintain it for the duration of the suspension/revocation.

2.6.1.5. When a vehicle operator has been identified for any of the offenses that initiates a preliminary suspension, 35 SFS/S5RA will generate a suspension/revocation package to be approved/disapproved by the 35 MSG/CC. If the package is disapproved, the preliminary suspension/revocation is rescinded.

2.6.2. Revocation of Driving Privileges.

2.6.2.1. Members who have their driving privileges revoked for a period of 365 days or more must deregister all vehicles under their name with the 35 SFS/S5PR office within 3 duty days of the effective date for de-registration.

2.6.2.2. When an individual's driving privileges are revoked and the USFJ Form 4EJ is confiscated, all vehicles registered to that individual will be deregistered at 35 SFS/S5PR office within 3 duty days. **NOTE:** The following exceptions are automatic for 35 FW personnel:

2.6.2.2.1. Only the primary vehicle utilized by the individual whose license was revoked will be deregistered, allowing spouses and dependents to operate family-owned vehicles without impact. If the member does not have dependents registered in DEERS with a valid USFJ Form 4EJ, the vehicle must be deregistered.

2.6.2.2.2. If deregistration of the vehicle will cause hardship, financial or otherwise, the individual can petition the 35 MSG/CC for authorization to maintain a registered vehicle throughout the revocation. This authorization must be provided to 35 SFS/S5PR for their records.

2.6.2.3. Personnel who are not granted restricted driving privileges must make arrangements to sell, transfer, or properly dispose of (deregister) their vehicle within 30 days of being notified of disapproval. For non-SOFA personnel, their vehicle must only be deregistered from military installations through 35 SFS/S5PR.

2.6.2.4. The foregoing action does not apply to spouses or dependents who are without registration privileges and whose driving privileges are revoked. Ensuring a spouse or dependent does not drive without an operator's permit is the responsibility of the sponsor.

2.6.2.4.1. U.S. Forces personnel, military retirees, or any other person whose driving privileges are revoked are not authorized to operate any motor vehicle on a USFJ installation. Specifically included in this restriction is the use of a GOJ driver's license to operate a GOJ licensed vehicle on MAB. This restriction applies to all motorized vehicles, while in effect.

2.6.3. Multiple suspensions/revocations will run concurrently unless otherwise determined by the 35 MSG/CC.

2.7. Reciprocal Procedures. IAW USFJI 31-205, the installation commander or designee (35 MSG/CC) will honor reciprocal suspensions or revocations issued by other installation commanders regardless of service component affiliation. Revocations remain in effect during reassignment unless the issuing authority terminates the revocation before reassignment. Anyone with suspended or revoked privileges may petition for restricted (partial or limited) driving privileges.

2.7.1. For off-base suspension and revocation requests, upon receipt of written notice from Japanese authorities, the installation commander or designee (35 MSG/CC), in coordination with 35 FW Judge Advocate (35 FW/JA) will initially suspend or revoke both GOV and POV driving privileges pending final resolution of the host nation case.

2.8. Administrative Due Process for Suspensions and Revocations. Members who are cited for violations that result in a loss of driving privileges will be afforded due process except as specified below. Affected members will have 14 calendar days from the day of acknowledgment of the suspension/revocation action to request an administrative hearing with the 35 FW/CV. The request for an administrative hearing must be submitted to the 35 SFS/S5RA office for processing prior to the end of the duty day on the 14th day. Late requests will not be accepted and will not be processed. The request for an appeal must be endorsed by the requestor's commander, or civilian equivalent supervisor for tenant agencies, prior to submitting the request. Individuals must indicate all matters they believe are relevant for the appeal authority to consider, including any extenuating circumstances, and must clearly state what relief they seek (e.g., a shorter suspension than proposed, no suspension, or other circumstances) in a memorandum (**Attachment 4**). Individuals cannot request restricted driving privileges through an administrative hearing. For restricted driving requests, they should follow the procedures as outlined in **paragraph 2.11** of this instruction. The memorandum and suspension letter will be processed by 35 SFS/S5RA.

2.8.1. The 35 SFS/S5RA office will provide all relevant information to the individual's case to the 35 FW/CV for review/decision within 7 days. Additionally, 35 SFS/RA will set up an in-person hearing with the 35 FW/CV, if requested. This coordination will include processing of the required documents for the hearing. If the unit commander concurs with the member's request for personal appearance, they will be required to attend the hearing with their member. If the unit commander non-concurs with the request, the unit first sergeant, or equivalent, must attend the hearing. A 35 SFS member will also be at the hearing to provide appropriate law enforcement and motor vehicle traffic supervision information.

2.8.2. While the suspension/revocation is being reviewed, the suspension/revocation will not take effect. **Exception:** preliminary suspensions will remain in effect during the appeal/review process. The 35 FW/CV will notify 35 SFS/S5RA of his/her findings via an administrative hearing decision memo. If the 35 FW/CV's decision upholds the suspension/revocation, the operator's driving privileges will be terminated the next duty day following the decision. Any suspension time served due to a preliminary suspension will be deducted from the overall suspension/revocation. The 35 SFS/S5RA office will notify the unit commander/first sergeant of the final action. Preliminary suspensions will remain in effect during the appeal/review process.

2.8.3. When requested by the member as part of an administrative hearing, and at the discretion of the installation administrative hearing official (35 FW/CV), suspensions or revocations may be served concurrently.

2.8.4. Suspension and/or revocations must be coordinated with 35 SFS/S5RA. **NOTE:** preliminary suspensions as identified in **Attachment 3** with a (P) will be issued by Security Forces at the time of the incident, with the suspension taking effect immediately, and will remain in effect until final disposition by the 35 MSG/CC or 35 FW/CV.

2.8.5. When a vehicle operator has been identified for any of the offenses that initiates a preliminary suspension, 35 SFS/S5RA will generate a suspension/revocation package to be approved/disapproved by the 35 MSG/CC. If the package is disapproved, the preliminary suspension/revocation is rescinded.

2.8.6. Unit commanders may request the 35 MSG/CC suspend a member's driving privileges for less than one year for dangerous driving habits. The unit commander must build a suspension package and submit a memorandum detailing the actions/events that generated the request, as well as a recommended length for the driving suspension. The 35 SFS/S5RA office will provide the proper memorandum and electronic Staff Summary Sheet (eSSS) templates to the requesting unit, but will not route or create the package for the unit. Upon making a determination, the 35 MSG/CC will notify the unit commander and first sergeant of his/her decision. It is the unit's responsibility to inform the member of his/her due process rights as outlined in Para **2-4**, and collect the license from the member. Once the member has surrendered his/her USFJ Form 4EJ, the unit will contact 35 SFS/S5RA to input the suspension into DBIDS and AFJIS.

2.8.7. An administrative hearing request must be submitted to the 35 SFS/S5RA office for processing. Late requests will not be accepted. The request for an appeal must be endorsed by the requestor's commander, or civilian equivalent supervisor for tenant agencies, prior to submitting the request. The 35 SFS/S5RA office will coordinate with the 35 FW/CV to set up an in-person hearing. This coordination will include processing of the required documents for the hearing. If the unit commander concurs with the member's request, they will be required to attend the hearing with the member of his/her unit. If the unit commander non-concurs with the request, the unit first sergeant, or equivalent, must attend the hearing. The unit must provide the reinstatement memorandum (**Attachment 5**) to 35 SFS/S5RA prior to the individual's suspension being removed from DBIDS. The suspension action cannot be prematurely rescinded by the unit.

2.9. Alcohol and Drug Abuse Programs.

2.9.1. For 35 FW assigned personnel, IAW AFI 31-218(I) and AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program*, commanders will refer military personnel involved in an alcohol or drug-related motor vehicle incident to the 35th Medical Group Mental Health (35 MDG/SGOW) office.

2.9.2. If the initial suspension or revocation was based on either of the aforementioned substances, the reinstatement letter will include verification of completion of the required substance abuse course.

2.10. Restoring Driving Privileges. All reinstatements from a suspension or revocation will be requested in writing and processed through the 35 SFS/S5RA office.

2.10.1. All members who have their driving privileges suspended or revoked must apply for USFJ Form 4EJ reinstatement. Requests for full reinstatement of driving privileges must be endorsed by the respective unit commander or first sergeant and processed through 35 SFS/S5RA (refer to **Attachment 5**). Personnel, while operating a Government Motor Vehicle (GMV) who have been convicted of a moving traffic violation or have been determined to have been at fault in a traffic mishap will attend the Driver Improvement and Rehabilitation Course with the 35th FW Safety Office (35 FW/SE). For driving offenses involving drinking or substance abuse, reinstatement will only be approved upon proof of completion of the substance abuse program through the 35th Medical Group (35 MDG) and Driver Improvement and Rehabilitation Course. Other services/tenant units on MAB will attend the driver improvement course(s) required by their service component, if any, in addition to the requirements stated above.

2.11. Restricted Driving Privileges.

2.11.1. Unless prohibited by higher authority, host-nation authority, or other publication, the 35 MSG/CC may authorize limited driving privileges to those whose authority to drive on military installations was suspended or revoked by the 35 FW. Restricted driving privileges will not be granted to any person whose driver's license is under suspension or revocation by a State, Federal, or Japanese licensing authority.

2.11.2. Restricted driving privilege requests for suspensions of 30 days or less will not be honored, except for hardship situations, i.e. single parent, spouse deployed, or severe medical condition.

2.11.3. Requests for restricted driving privileges must be endorsed by the unit commander or Agency Chief. The requestor's unit must route the restricted driving package through 35 SFS, 35 FW/JA, & 35 MSG/CC. Personnel must show documented proof they have completed the appropriate program(s) required for driving privileges reinstatement prior to approval.

2.11.3.1. The requestor will identify the vehicle(s) to be driven, the location and occasion in which the vehicle(s) may be driven. Specify driving privileges that are mission essential or necessary to avoid family hardship. The following facilities may be considered mission essential: medical facilities for emergencies, base gas station, commissary/Base Exchange (BX), schools for children, places of worship, and work location(s). A copy of the limited driving letter will be kept in the vehicle at all times. For additional guidance on the letter, contact the 35 SFS Reports and Analysis Office at DSN 226-2241/2293 (refer to **Attachment 7**).

2.11.4. Personnel granted POV restricted driving privileges will take their restricted driving privileges letter to the 35 SFS/S5PR office, who in-turn will issue a new USFJ Form 4EJ stamped with "Restricted." Personnel granted limited or regular GOV driving privileges must submit the letter to 35th Logistics Readiness Squadron Vehicle Operations (35 LRS/LGRDDO) through the unit VCO for GOV permit re-issue (refer to **Attachment 6** and **Attachment 7**). Non-SOFA members must maintain a copy of the letter on their person at all times while operating a vehicle on military installations.

2.11.5. If restricted privileges are approved and the individual is subsequently operating a vehicle outside of the restricted privileges, found at fault in a motor vehicle accident, or cited for any subsequent violation(s), they will lose their restricted driving privileges, and the original suspension or revocation will be reinstated, retroactive from the date of the initial offense. The reinstatement of the suspension or revocation action will be effective immediately upon notification of the individual's first sergeant, or equivalent, by 35 SFS/S5RA.

2.12. Extension of Suspensions and Revocations. Individuals who drive while on a suspension or revocation will have an additional 2 years added to the original suspension or revocation time period. Additional administrative or disciplinary actions may also be taken by the unit commander or Misawa Conduct Adjudication Program (MCAP).

2.13. Reciprocal State-Military Actions.

2.13.1. IAW AFI 31-115*, Law and Order Operations,* 35 SFS/S5RA will notify state licensing agencies of DoD personnel whose installation driving privileges are revoked for 1 year or longer following final adjudication of an intoxicated driving offense or upon refusal to submit to a lawful Blood Alcohol Content (BAC)/Breath Alcohol Concentration (BrAC) test. Exception: This action will not be taken against non-SOFA personnel unless the individual is a US citizen. The following is applicable:

2.13.1.1. Personnel whose driving privileges are suspended or revoked by state, federal, or Japanese licensing authority are ineligible for any driving privileges to include limited or restricted.

3. Motor Vehicle Registration.

3.1. Registration Policy. Vehicle registration and safety procedures, requirements, and forms will be updated IAW USFJI 31-205, and this instruction.

3.1.1. United States Armed Forces personnel, dependents, and members of the civilian component falling under SOFA stationed at Misawa Air Base will present all privately owned motor vehicles and trailers to the 35 SFS/S5PR office for registration. Personnel stationed or temporarily assigned to MAB for a tour of six months or less may not purchase or register a vehicle.

3.1.2. Personnel may not buy, sell, broker, or transfer cars as a commercial business.

3.1.3. Registered owners of POVs are responsible for ensuring all insurance requirements Japan Compulsory Insurance (JCI) and Property Damage Insurance (PDI) as well as the provisions of AFI 31-218(I) and USFJI 31-205, and are met before a vehicle is operated. Failure to have or maintain proper insurance (JCI/PDI) will result in a suspension driving privileges.

3.1.4. Vehicles will be kept in working order at all times. Owners with vehicles cited for safety defects or illegal modifications in violation will have 72 hours to correct the defect and must report to 35 SFS/RA for verification.

3.2. Registration.

3.2.1. SOFA personnel (including Non-SOFA retired personnel) can register vehicles purchased from another SOFA member, from a Japanese national, or a Japanese Dealership through the 35 SFS/S5PR office.

3.2.1.1. Unaccompanied personnel are authorized one 4-wheel and one 2-wheel vehicle. Accompanied SOFA members may register one POV for each dependent who meets the driving eligibility requirements outlined in **paragraph 2.2.3** The number of authorized vehicles is based on the number of licensed operators, not each individual's SOFA status, i.e. 3 licensed operators equals authorization to register 3 4-wheel/3 2-wheel vehicles. Individuals must request and receive approval to own/register any additional vehicles. Special purpose vehicles not designed for use on public roadways need not be registered. These include competition motorcycles, racecars, go-carts, and specialized vehicles for transporting the physically disabled. Owners of special purpose vehicles must bring proof of title/ownership to 35 SFS/S5PR office to be entered into DBIDS. All vehicles will be deregistered prior to personnel being signed off on applicable out-processing checklist. Request for extensions are on a case by case

basis. **NOTE:** Motorcycle. Personnel who purchase/transfer a motorcycle who have not completed the Motorcycle Safety Foundation (MSF) Basic Rider Course (BRC) and have not received proper licensing are allowed to register the motorcycle under the following conditions: The engine size of the motorcycle is commensurate with the level of training to be obtained. Projected owner must provide valid JCI, Liability and inspection during registration. The new/projected owner of the motorcycle is not allowed to operate the purchased motorcycle until properly licensed. Personnel must not exceed the authorized number of vehicles per family outlined in this instruction. Additionally, personnel will produce a signed memorandum from their Unit Commander, Flight Chief, or equivalent identifying the personnel involved and the Make, Model, and the size of the motorcycle to be registered.

3.2.1.2. Non-SOFA personnel are not required to register vehicles for base access. Individuals will only need to provide proof of installation access media.

3.2.1.3. Exceptions to the vehicle registration limits may be approved by routing an Exception to Policy (ETP) request through their unit commander, 35 SFS/S5PR will then route it to the 35 SFS/CC for approval. The 35 MSG/CC will retain the final determination for disapproval. The request must clearly outline the circumstances of use and justification for exception.

3.2.1.4. To ensure program integrity, personnel assigned to the 35 SFS/S5PR office are not authorized to process any vehicle registration, title transfer, etc. in which they are the buyer, seller or hold a Power of Attorney (POA) for the vehicle in question.

3.2.2. When purchasing from another SOFA member, the buyer and seller must appear together, or be represented by a POA, at the 35 SFS/S5PR office with the following: vehicle title, JCI, liability insurance, a current road tax receipt; DBIDS Registration Form; military ID; and current MAB issued USFJ Form 4EJ. JCI, liability insurance, and road tax must be valid the entire time the POA is in effect. In order to receive POA, the vehicle must have valid JCI, liability insurance, and road tax. The only exception to this will be if the POA holder is receiving POA for the specific purpose of renewing one of the above for another member. If at all the JCI, liability insurance, or road tax becomes invalid while the POA is in effect, the POA will then be considered invalid as well. The Road Tax decal will remain on the vehicle and will transfer from the seller to the buyer. 35 SFS/S5PR will have the members sign the 35 FW Form 97EJ, Confirmation of Procedures for POV Registration/Transaction; Japanese POA; and Japanese Vehicle Transfer Request. 35 SFS/S5PR will confirm that the new owners have submitted transfer documents for title change by reviewing new insurance policy or contacting appropriate authority.

3.2.3. When purchasing from a resident of Japan, the buyer must present the vehicle title, JCI, current road tax receipt, and name and address of seller (in English and Japanese). The buyer will sign the 35 FW Form 97EJ, Japanese POA, and Japanese Vehicle Transfer Request. The buyer will then need to have the seller sign the Japanese POA.

3.2.4. When purchasing from a dealership, the buyer must present the vehicle title and sales agreement to the 35 SFS/S5PR office. The buyer will sign the 35 FW Form 97EJ, Japanese POA, and Japanese Vehicle Transfer Request.

3.2.5. The buyer will then take all documents to a Japanese car dealer, insurance company, or Land and Transportation Office to pay for a new vehicle title, insurance (liability and JCI), current road tax, and inspections, as applicable. The 35 FW Form 97EJ has a two-week expiration date during which time the buyer must have the vehicle title transferred into their name. **NOTE:** Once the new owner has received the new title they must return to 35 SFS/S5PR to complete the base registration process. If the buyer does not complete the vehicle transfer by obtaining a new title, the buyer can be cited with failure to register their vehicle.

3.2.6. 35 SFS/S5PR office will:

3.2.6.1. Determine acceptability of proof of ownership and adequacy of insurance coverage by examination of ownership documents and insurance policies.

3.2.6.2. Prepare and issue the *Military Registration and Certificate of Title of Motor Vehicle*.

3.2.6.3. Provide the registrant with USFJ Form 15A or B, *Vehicle Registration Decals*, and other decals as required by rank and/or circumstance. The issuance of this form will be based upon having the correct documents as listed above.

3.2.7. US Forces personnel must present privately owned vehicles, cars, trucks, motorcycles, and trailers, to which they have title, possession, or custody to GOJ authorities for inspection, registration, and to obtain GOJ license plates prior to operating them on any roadway. If a vehicle cannot be registered and issued license plates through GOJ, the vehicle cannot be operated on roadways or MAB. Exception: mission essential motorized vehicles owned and those operated by the Air Force, U.S. or Japanese Governments.

3.2.7.1. Special purpose vehicles, such as ATVs, dirt bikes, off-road, or other recreational vehicles, must be registered with DBIDS Registration Form. These vehicles are only authorized for use at approved locations, not on public roadways. Liability insurance for special purpose vehicles is not required; however, liability insurance is strongly recommended.

3.2.8. Personnel will deregister their vehicles at 35 SFS/S5PR by properly transferring ownership of the vehicle, salvaging the vehicle through an approved salvage yard, or exporting the vehicle.

3.2.8.1. Transfer of Ownership. Current owner will transfer ownership using 35 FW Form 97EJ.

3.2.8.2. Salvage of Vehicle. Owners must go to an approved salvage yard to retrieve a junk/scrap receipt, front and back license plates, USFJ Form 15 A/B road tax decal, and registration paperwork, and must bring these items to 35 SFS/S5PR office. 35 SFS/S5PR will issue a Japanese POA and 35 FW Form 97EJ to be taken to a local insurance company to acquire a deregistered title certificate. This certificate must be brought back to 35 SFS/S5PR office within 5 duty days, at this time the vehicle will be removed from DBIDS.

3.2.8.3. Exporting of Vehicle. The owner must coordinate with TMO; bring the vehicle and export documents to 35 SFS/S5PR office; sign 35 FW Form 97EJ and Japanese POA; take all documents to an insurance company to acquire an export title certificate. The owner then must bring the certificate and documents back to 35 SFS/S5PR office for final processing.

3.2.9. In order to out-process from MAB, personnel must provide proof of vehicle deregistration (sale/salvage) to 35 SFS/S5PR office no later than 10 days prior to final out-processing. A POA for the sale or disposal of a vehicle showing the member is in the process of selling and deregistering a vehicle, will suffice for out-processing purposes provided it is presented no later than 10 calendar days prior to final out-processing and removed from DBIDS.

3.2.9.1. A POA for the sale or disposal of a vehicle will only be accepted for out-processing purposes provided the POA is valid for no more than 365 days. The registration and insurance must be current, and remain current for the duration of the POA. In the instance the registration or insurance expires prior to the expiration date of the POA, the POA will not be accepted for out-processing. No more than three POAs for the sale or disposal of a vehicle can be issued to any individual (POA holder) per calendar year. Additional POAs will not be accepted. Exceptions to POA holder restrictions may be submitted to the MSG/CC for approval.

3.2.9.2. Title holders (registered owner) understand and consent to in the event a vehicle is not properly deregistered and NLT 10 days prior to POA expiration, the vehicle is considered abandoned and the POA holder will take the necessary actions to salvage and deregister the vehicle.

3.2.9.3. Upon departure of the registered owner, POA holders assume responsibility for the vehicle and are administratively accountable for final vehicle disposition.

3.3. Official Vehicles (OV).

3.3.1. The 35 MSG/CC is authorized to approve government agencies use of OV plates for mission related activities. These vehicles will not be operated for personal use or benefit of the operator or passenger. The motor vehicles are to be used only for the regular business of the activity. The only exception to this is non-appropriated fund vehicles as determined by the Non-appropriated Fund (NAF) Accounting Office. The following organizations currently operate vehicles with OV numbers and are considered to be publicly owned motor vehicles: NAF Activities, Japan and Misawa Area Exchanges, Navy, Army and Air Force Exchanges, clubs and organizations (which are an instrumentality of the US Forces), and Pacific Stars and Stripes. Other activities include that use OV numbers but are considered privately owned vehicles are as follows: American Red Cross, military banking facilities, credit unions, and universities providing college-level off-duty education programs vehicles.

3.3.2. All motor vehicles bearing OV numbers will provide evidence of an annual inspection. Privately owned vehicles as described in the above paragraph will provide evidence of valid insurance (JCI and PDI).

3.3.3. POVs assigned OV plates are required to have Japan Compulsory Insurance (JCI) and Property Damage Insurance (PDI).

3.3.4. OV plates will be issued by the 35 FW Form 119.

3.4. Registration Officials.

3.4.1. IAW USFJI 31-205 and paragraph 1.4.1 of this instruction, the installation commander recognizes 35 SFS/S5PR office as the primary for all permanent/temporary vehicle registration requirements. Personnel will abide by AFI 31-218(I), USFJI 31-205, 35 FW Plan 31-101, and this instruction.

3.5. Specifications for USFJ Registration.

3.5.1. The 35 SFS/S5PR office is responsible for the issuance of USFJ Form 15A and 15B. The decal serves as proof of motor vehicle registration for US Forces personnel.

3.5.2. The aforementioned forms are controlled items and must be accounted for from issue to final disposition. Once issued, the motorist is responsible for the control and return of the form to the issuing authority. If the form is lost, stolen or deemed to be unserviceable, the motorist will immediately report this to the issuing authority. If a crime is suspected, the motorist will immediately report the incident to law enforcement personnel.

3.5.3. Personnel with a valid need for a handicapped decal must provide 35 SFS/S5PR office with a letter from a medical care provider outlining the need and duration of handicapped access. If personnel have a current placard issued by a state or government agency, they must provide 35 SFS/S5PR office with the documentation to be issued a base handicap placard.

3.5.4. The installation commander has determined retired military personnel in possession of installation access media and not on the barment roster may obtain handicapped vehicle decals and other registration documents as approved and provided by the 35 SFS/S5PR office.

3.5.5. IAW Government of Japan (GOJ) law, POVs must pass a safety inspection every 2 years. A POV imported from the U.S., regardless of year of manufacture, will be considered a new vehicle when first presented for Japanese inspection. The owner must comply with the GOJ three year JCI requirement, Motor Vehicle Tonnage Tax must also be paid for full three year period. JCI coverage is required for the inspection period. Prior to issuance of the inspection certificate and inspection sticker (issued upon successful completion of inspection), proof of valid JCI and PDI must be presented to inspection officials. The year period of validity for safety inspections is annotated on each Japanese vehicle title.

3.6. Termination or Denial of Registration.

3.6.1. IAW AFI 31-218(I), USFJI 31-205, 35FW Plan 31-101, and this instruction, driving on MAB is a privilege granted by the installation commander. To exercise that privilege, vehicle operators must comply with all laws and instructions for registration requirements. All SOFA registered POV owners in the prefectures of northeast Japan: Aomori, Akita, Iwate, Miyagi, and Yamagata fall under the purview of the 35 SFS/S5PR office. Superseding instructions are in effect and enforceable on MAB as it applies to registration, equipment, and impoundment requirements for all motor vehicles requiring registration through 35 SFS/S5PR office.

3.6.1.1. Execution. This instruction applies to the following individuals:

3.6.1.1.1. All active-duty personnel, DoD civilian employees, and their dependents operating POVs/GOVs in the prefectures of northeast Japan: Aomori, Akita, Iwate, Miyagi, and Yamagata.

3.6.1.1.2. All Japanese national employees of US Forces Japan and Residents of Japan (RoJ) authorized to operate a POV on USFJ installations.

3.6.1.1.3. All US Forces Japan personnel, Japanese national employees and RoJ for the purpose of registration, inspection, and equipment of both POV and those under control of US Forces Japan.

4. Traffic Planning and Codes.

4.1. Traffic Planning. These provisions apply to all persons who operate motor vehicles on MAB or any area under the jurisdiction of the installation commander. The 35 SFS performs the mission of directing, controlling and enforcing traffic rules, and ensuring that motor/non-motor vehicles, materials, and personnel flow safely and efficiently over roadways. Japanese traffic and vehicle safety laws are strictly enforced on MAB. Additional traffic laws and penalties are listed in **Attachment 3** of this instruction and AFI 91-207 for bicycle/motorcycle guidance.

4.1.1. Modifications or adjustments to the traffic flow program on MAB must be coordinated with the Defense Force Commander (DFC) or designee.

4.1.2. Requests to close roads or divert traffic will be coordinated through 35 SFS, 35 CES, 35 MDG, and 35 FW Safety to the 35 MSG/CD for approval at least 14 days prior to the event/activity. When the closure will impact Risner Circle, the coordination will also include the 35 FW/DS.

4.1.3. Requestors must justify the reason for closure or diversion and provide a detailed plan for road closures or roadway diversion. The plan must include a map overlay of the roadway being closed or diverted and a detour route. In addition, the overlay must include the positions of all Traffic Control Points (TCPs), physical barriers, and warning signs used to close or divert traffic. The requestor is responsible for the supply of all TCPs, barriers, and signs as well as for making mass notification to the public concerning the closure or diversion via AFN, 35 FW/PA, and other base agencies as necessary.

4.1.4. Special events occurring outside the installation that require gate closures will be approved by installation commander or designee. When notified of an event requiring gate closure, 35 SFS will provide the necessary information on gate operations and traffic pattern changes. 35 SFS will request augmentation support as necessary for any increased gate operations.

4.2. Installation Traffic Codes.

4.2.1. These provisions apply to all persons who operate motor vehicles, bicycles (including non-motorized vehicles operated upon roadways) and all pedestrians on MAB or any area under the control and jurisdiction of the installation commander or as listed in USFJI 31-203 or USFJI 31-205. The goal of the installation traffic code is to outline the rules of the road for vehicle operators. The 35th Security Forces Squadron performs the missions of directing, controlling, and enforcing traffic laws and of ensuring vehicles, materials, and personnel flow safely and efficiently over roadways under Air Force control or MAB jurisdictional boundaries IAW established procedures and rules of the road. Personnel violating these codes or rules may be issued a DD Form 1408, *Armed Forces Traffic Ticket*, by Security Forces personnel, or may be apprehended as authorized.

4.2.2. On-scene Security Forces directing traffic, or other personnel properly trained by Security Forces, to include school crossing guards, have precedence over written regulations and traffic signs or signals. In the absence of Security Forces or other authorized personnel conducting traffic control, the traffic signs or signals of paragraphs **4.2.7 through 4.2.7.9** will apply.

4.2.3. Heavy, Oversized or Special Equipment.

4.2.3.1. Vehicle operators must observe all base speed limits. If heavy equipment (e.g., front end loaders, cranes, forklifts, Military-Field Series) vehicles have lights and turn signals, they do not have to be escorted unless they are wider than one lane of traffic or interfere with the normal flow of traffic. The sponsoring agency will coordinate with Security Forces prior to movement to help determine the best route and time to conduct the move. The sponsoring agency or equipment operators will provide personnel necessary to facilitate safe movement and traffic control.

4.2.4. Golf Cart/Utility Type Vehicles/Equipment.

4.2.4.1. The use of golf carts and 3 or 4-wheeled maintenance vehicles (utility type) is normally restricted to non-roadway areas. These vehicles are currently authorized on the golf courses, Civil Engineer (CE) shop areas, 35th Force Support Squadron (35 FSS) recreational areas, and other similar areas. Should organizations have a requirement to operate these vehicles on open roadways, they must submit a request to 35 FW/SE with justification unless used in conjunction with base sponsored events. **Exception:** 35th Security Forces may use these types of vehicles in the performance of official duties. **NOTE:** These motorized vehicles are classified as equipment; therefore, damages associated with accidents, mishaps, and incidents do not warrant traditional Security Forces traffic accident investigation, but may warrant a Report of Survey IAW AFMAN 23-220, *Reports of Survey for Air Force Property,* by owner/user organizations.

4.2.5. Vehicle operators will maintain positive control of their vehicles at all times, ensuring the safety of lives and property on or near roadways. When other factors such as weather, heavy traffic, accidents, or road conditions require a slower speed limit, vehicle operators are required to travel at a safe speed consistent with the hazard, regardless of the posted speed limit. Vehicle operators are expected to devote their complete attention to driving the vehicle safely and will abide by traffic rules as follows:

4.2.5.1. Vehicles will be operated only in the left lane (traveling lane or lane #1) of the roadway except when overtaking, passing in a passing zone, on a multi-lane roadway or when the left half of the roadway is under construction or unobstructed and safe movement in the right lane is possible.

4.2.5.2. Maintain a safe distance between vehicles while traveling upon the roadway to ensure adequate braking distance as specified below:

4.2.5.2.1. Vehicle operators will maintain 10 feet of distance for every 10 kilometers per hour (KPH), e.g., a vehicle traveling at 60 KPH will maintain a safe distance of at least 60 feet or at least three car lengths from the vehicle in front.

4.2.5.3. Left turns will be made from as near to the left side of the roadway as possible.

4.2.5.4. Yield right-of-way to bicyclists traveling to the far-left lane adjacent to the curb, when vehicles are turning left.

4.2.5.5. Make appropriate hand-and-arm or mechanical turn signals for at least 100 feet before making a turn off a roadway.

4.2.5.6. Make certain a safe route of travel exists before entering the flow of traffic from a stopped position.

4.2.5.7. Yield right-of-way to vehicles traveling on a primary or main roadway or a clearly larger roadway when entering from an unmarked intersection, road, alley or driveway.

4.2.5.8. Yield right-of-way to vehicles on the left at unmarked intersections. At four-way stops yield right-of-way to the first vehicle stopped. If it is unclear as to which vehicle stopped first, the vehicle to the left has the right of way. However, you may be courteous and use prudent judgment to motion the other driver to proceed. If you follow this course, it is imperative you ensure all vehicle operators acknowledge the hand signal to proceed prior to moving.

4.2.5.9. Obey all temporary road construction signs/flagmen. Temporary construction traffic signs have precedence over permanent posted signs.

4.2.5.10. Do not operate a vehicle on any surface not designed for vehicle use. All-terrain vehicles, skateboards, dirt bikes, mini-bikes, gas/electric powered scooters, onewheel, or dune buggies, which do not conform to the POV registration requirements, cannot be operated on MAB roadways. Skateboards, gas/electric scooters, one-wheeled hover boards, Segway's and similar type of equipment may be operated on sidewalks in a safe manner. **NOTE:** Mission essential GOVs or equipment are exempt from this requirement.

4.2.5.11. Do not break traction when starting a vehicle in motion.

4.2.5.12. Do not side-skid while either accelerating (acceleration scuff) or braking.

4.2.5.13. Do not participate in any kind of race or speed contest on roadways or any surface (e.g. drifting).

4.2.5.14. Do not proceed through "No Thoroughfare School Zones" at designated times and locations.

4.2.5.15. Do not back any vehicle with restricted rear vision, without a spotter. If a spotter is not available, the operator must dismount the vehicle to ensure there are no obstructions to the rear before backing by conducting a 360-degree walk around of their vehicle (in GOVs) and honk the horn before backing.

4.2.5.16. Do not alter, twist, remove, or interfere with the effective operation of any official traffic control device without lawful authority.

4.2.5.17. Vehicle operators must come to a complete stop when entering any base gate unless directed otherwise by the gate sentry. If the sentry is busy (e.g., detaining someone, giving directions, or performing other official duties) vehicle operators will not proceed until their identification is verified and they are signaled to do so.

4.2.5.18. Yield right-of-way to pedestrians at all crosswalks; within or about to enter pedestrian crossings. Proceed only after pedestrians have completely cleared the crosswalk. Do not stop or park on a crosswalk.

4.2.5.19. At no time will vehicles (POVs or GOVs) be operated with any open alcoholic container inside the vehicle (does not include the trunk). Alcoholic beverages will not be transported in the passenger compartment of a vehicle after the original seal has been broken or removed for the first time. Likewise, operators and passengers will not consume alcoholic beverages in a vehicle. When an open container is observed, both the operator and passengers will be cited for this offense.

4.2.5.20. All vehicle operators and passengers must wear the manufacturer's primary restraint system (e.g., seat belts). Passengers may not ride in the bed of POV pick-up trucks. Passengers may ride in the bed of a GOV pick-up truck if it is mission-essential or when no seating in the cab is available. Passengers riding in the bed of a GOV must be seated flat on the bed, i.e. not riding on wheel wells or side rails. The commander must approve a formal risk assessment IAW AFI 90-802, *Risk Management*. Passengers in the bed of GOV pick-up trucks will not sit on, adjacent to, lean against or with their back to the tailgate of the truck bed.

4.2.6. Security Forces patrols, based upon personal observations or observations reported to them by competent witnesses, are authorized to prevent persons suspected of being intoxicated from gaining access to their vehicle. Unless a suspected intoxicated person is operating or is in actual physical control of their motor vehicle, the operator may be detained and turned over to their respective unit with no further action required by Security Forces. Security Forces may take further action if other infractions occurred during the interaction. If the suspected intoxicated person resists this preventative measure, they may be apprehended for drunk and disorderly conduct.

4.2.7. Traffic Signals. Vehicle operators will obey all standard traffic signs and road markings and, in addition, will observe the following rules:

4.2.7.1. Left turn on red light. Come to a complete stop and wait for the light to change to green or when making a left turn on red, come to a complete stop and yield right-of-way before turning. **NOTE:** Left turn on red is authorized on MAB when posted.

4.2.7.2. Red Light. All traffic must come to a complete stop and wait for the light to turn green prior to proceeding unless a left turn is permitted and can be safely made.

4.2.7.3. Yellow Light. Use all due caution before proceeding; if possible stop before the light turns red. Entering the intersection during a yellow light without accelerating is not an infraction. However, if the light turns red before the vehicle enters the intersection, it is an infraction.

4.2.7.4. Green Light. Proceed through the intersection at a safe speed.

4.2.7.5. Green Arrow Light. Only traffic turning in the direction indicated may proceed.

4.2.7.6. Flashing Red Light. Come to a complete stop, ensure traffic is clear, and proceed cautiously across or into the roadway.

4.2.7.7. Flashing Yellow Light. Slow to a safe speed and yield right-of-way to traffic coming from the opposite direction.

4.2.7.8. Stop Sign (triangle shaped with either Kanji or English or white painted diamond on the pavement when personnel are utilizing the crosswalk). Come to a complete stop and yield right-of-way before entering the intersection.

4.2.7.9. Yield Sign (triangle shaped with either Kanji or English). Slow down to a safe speed and yield right-of-way. If necessary, stop for approaching vehicles which have the right-of-way.

4.2.7.10. Intersections with inoperative traffic lights are treated the same as 4-way-stop intersections. Operators must yield to vehicles IAW paragraphs **4.2.5.8 and 4.2.5.9**.

4.2.7.11. Avoiding Traffic Control Device. Operators will not drive through parking lots or non-street areas, turn left on red and execute an illegal U-turn to circumvent traffic control devices.

4.2.8. Safety Standards. The minimum safety standards for vehicle operations on MAB roadways are:

4.2.8.1. All drivers and passengers on MAB will wear seat belts, or in the case of infants, be properly restrained. Seat belts must be installed and properly worn by all occupants whenever a vehicle is being operated. All children under 4 years of age regardless of weight, or less than 50 pounds regardless of age, are to be properly secured in an appropriate child restraint system. Children ages 4 through 7, weighing 50 pounds or more and less than 4 feet 9 inches are to be properly secured in a booster seat or other appropriate child restraint system. Children ages 8 and above and no less than 4 feet 9 inches in height will be properly secured in a vehicle utilizing a seat belt or booster seat. The child safety seat or booster seat must be certified by the manufacturer to meet all applicable Federal performance standards or host nation requirements and installed IAW the manufacturer's instruction.

4.2.8.2. Headlights will be used from sunset to sunrise, when it rains, or whenever roadway conditions limit visibility to less than 500 feet. POVs may have a maximum of four (does not include fog lights) clear or white light-producing headlamps on the front of the vehicle. These headlamps must be clearly visible and free of debris, mud and dirt. After-market covers, colored lenses, or colored light bulbs are prohibited.

4.2.8.3. Parking lights and/or fog lights will not be used in lieu of headlights. Fog lights will be used only in conjunction with low-beam headlights. Privately owned vehicles are limited to a maximum of two clear or white-light fog lamps (including cover). Parking lights and covers must be amber or red for the rear of the vehicle and must be amber for any other location on the vehicle. Rear brake lights and housings must be red and not covered by after-market covers. Additional lights or colors are prohibited.

4.2.8.4. Turn off headlights and leave parking lights on when entering the installation gates or approaching manned entry control points (ECPs) after dark from a reasonably safe distance.

4.2.8.5. All motorized vehicle, skateboard, bicycle, and scooter operators will not wear headphones while utilizing any of the above listed. **Exception:** Government issued equipment required for mission accomplishment or microphone-and-ear speaker systems used by a motorcycle operator and passenger.

4.2.8.6. Only tow trucks or vehicles equipped with specially designed tow bars will tow vehicles.

4.2.8.7. Vehicles will not be operated with the doors opened, removed, or with any type of obstruction impairing the operator's vision. **Exception:** GOVs with safety nets/straps on Military-Series Vehicles.

4.2.8.8. IAW AFI 91-207, restrict the number of people in GOVs to the designed seating capacity of available seat belts. This includes sedans, station wagons, buses, trucks, and cargo vans with passenger seats. This excludes buses not manufactured with seat belts. When exigent circumstances or contingency requirements exceed availability of such vehicles, commanders, through the risk management decision making process, will determine the appropriate mode of transportation or operating procedures for such existing vehicles. Persons transported in the bed of a GOV truck will follow the guidance listed in **paragraph 4.2.5.20**.

4.2.8.9. Passengers will not ride on special equipment or aircraft-towing vehicles unless sitting on a seat designed as a part of the vehicle equipment.

4.2.8.10. The number of personnel transported in a vehicle will not exceed the number which the vehicle was designed to carry with proper seatbelt restraints.

4.2.8.11. Vehicles will not be stopped to discharge passengers within an intersection, roadway, or other area not specifically designated for drop-off or parking.

4.2.8.12. Vehicles will not be left unattended at any time with the engine running or keys in the ignition. Exception: emergency response or mission essential GOVs may be left running when required. Vehicles will be put in park or neutral, with the emergency brake set. During winter periods, vehicles may be left running unoccupied outside of personal residence or personal work center for no more than 20 minutes to warm up the engine prior to operating. Operators are responsible to ensure vehicles are secured at all times when they are not with the vehicle. Vehicle operators are prohibited from leaving a vehicle running while entering a facility to conduct business (i.e. stopping at the Shoppette, Post Office, etc.).

4.2.8.13. Vehicle operators will not use mobile phones (including sending and receiving text messages, and holding a phone while in speakerphone mode), handheld electronic devices, watch television, or have other similar equipment turned on within their eyesight while operating a motor vehicle. DoDI 6055.04, DoD *Traffic Safety Program*, defines "Texting" or "Text Messaging" as reading from or entering data into any handheld or other electronic device, including for the purpose of Short Message Service (SMS) texting, e-mailing, instant messaging, obtaining navigational information, or engaging in any other form of electronic data retrieval or electronic data communication. Global Positioning System (GPS) should be set-up prior to operating the vehicle and only viewed briefly as needed, but never touched. It is highly recommend that the voice-directions setting is utilized for all GPS devices to avoid the need to view a console. The GPS console must be mounted as high on the dashboard as possible in order to ensure the driver does not have to take their eyes completely off the road to view it. **Exception:** Emergency response vehicle operators may use handheld electronic devices required to perform mission functions. **NOTE:** Hands free devices/ear pieces, for use with cellular phones is authorized.

4.2.9. Noise or music originating from within vehicles will not be heard from a distance greater than 20 feet from the vehicle when the windows are up or down. Noise or music will not impede the operator's or other driver's ability to hear emergency vehicles approaching or distract other operators' full attention from operation of their vehicles.

4.2.10. Vehicle operators will yield the right of way (pull safely to the shoulder of the road) to all emergency vehicles when such vehicles are responding to an emergency and are utilizing their emergency lights and/or siren. Operators will not follow within 500 feet of any emergency vehicle. **NOTE:** The following are classified as emergency vehicles on MAB: marked Security Forces vehicles, Fire Department vehicles, ambulances, emergency maintenance vehicles with overhead light bars, Wing Commander, Group Commanders, and Wing Safety vehicles.

4.2.11. Vehicle Owner or Operator Responsibilities. Vehicle owners and/or operators are responsible for their vehicle at all times and will ensure the following:

4.2.11.1. Vehicle owners are solely responsible for ensuring only authorized and properly licensed personnel operate their vehicles, and will not lend or otherwise allow their vehicle to be operated by an unlicensed driver, drunk or impaired person. Doing so subjects them to possible loss of driving privileges.

4.2.11.2. IAW USFJI 31-205, para 2.1.4, US Forces individuals will not rent, lend, or permit the use or operation of their POVs by persons other than those who possess a valid USFJ Form 4EJ, *US Forces, Japan Operator's Permit for Civilian Vehicle (PA)*. They also will not lend, rent, or authorize use under a power of attorney or otherwise give custody of their POVs to persons other than US Forces personnel, except for the following reasons:

4.2.11.2.1. Being driven by the owner's authorized chauffeur to implement instructions received from employer.

4.2.11.2.2. Undergoing maintenance or repair.

4.2.11.2.3. Being shipped into or out of Japan.

4.2.11.2.4. Stored in a parking lot or garage.

4.2.11.2.5. Placed in temporary storage pending authorized disposition to a resident of Japan IAW USFJI 31-205 (Disposition of Personal Property in Japan).

4.2.11.2.6. Being driven by a properly licensed individual while the owner/operator is incapable of driving themselves, e.g., physically incapacitated, too tired, or consumed any alcohol.

4.2.11.2.7. Being driven by a family member who possesses a valid GOJ operators permit or International Driver Permit recognized by Japan.

4.2.11.2.8. Undergoing inspection and processing at a GOJ and Land Transportation Office (LTO). **NOTE:** U.S. Forces personnel are authorized to rent or borrow a motor vehicle, including a Japanese-owned motor vehicle, after complying with all the following conditions:

4.2.11.2.8.1. Operators have a valid USFJ Form 4EJ for the type of motor vehicle to be operated.

4.2.11.2.8.2. Operators have the owner's written permission (other than a family member) in their immediate possession while operating the motor vehicle (only required when the owner is out of reach, e.g., TDY, leave, etc.). **NOTE:** usage exceeding 24 hours will warrant coordination with 35 WG/JA for the issuance of a Power of Attorney. The vehicle is covered by insurance as prescribed in USFJI 31-205, paragraph 3.7.1. TDY persons renting or operating a vehicle are not required to have commercial insurance if the vehicle is authorized on the member's orders. In this case, the vehicle is covered under the U.S. government's self-insurance policy.

4.2.11.2.9. If the vehicle owner is not present and a letter of permission is not available, Security Forces may administratively hold or impound the vehicle until the registered owner can be contacted to verify the operator has permission to operate the vehicle. **NOTE:** owners are responsible for all towing charges if performed by a civilian agency. Failure to pay tow charges may warrant pay garnishment until the amount of the debt is recovered. The vehicle will remain on hold or impounded until full payment is made.

4.2.11.3. Any SOFA member involved in a vehicle accident must immediately report the accident to the Base Defense Operations Center (BDOC) prior to departing the scene and to their unit first sergeant within 24 hours. **NOTE:** Safety is always the top priority. Always remain or get to a safe location, environment, etc. and then report then accident). Sponsors will report accidents involving dependents. Organizations without a first sergeant will report the accident to their supervisor.

4.2.11.3.1. SOFA members involved in a vehicle accident have 3-duty days to report the accident to their insurance company. Failure to report the accident within the require time may result in a suspension of driving privileges and/or action by your unit commander.

4.2.11.3.2. 35 SFS/S5RA office will not release accident reports directly to members involved. Per USFJI 31-205, the report will be provided to the insurance company upon request which is why it is required for members to report accidents within 3 duty days to their insurance company. Personnel involved in an accident can exchange insurance information on-scene if both parties agree.

4.2.11.3.3. Ultimately, since most SOFA members carry only liability insurance, it is imperative that the operator who was deemed at fault report the accident to their insurance within the required time. Otherwise, this delays the process for the other member getting their vehicle fixed. If a member is involved in an accident and the other person is at fault, you may contact the 35 SFS/S5RA office if you have not received a phone call from the other member's insurance after 10 days.

4.2.12. Defective, noncompliant, or illegally modified vehicles. It is unlawful for any person to drive or move, or for the owner to cause or knowingly permit to be driven or moved, on any roadway, any vehicle or combination of vehicles which is in such an unsafe condition as to endanger any person, or which does not contain those parts or is not at all times equipped with such lamps and other equipment in proper condition and adjustment and to constitute an unsafe condition, or which is equipped in any manner in violation of this instruction. USFJ personnel are prohibited from physically modifying or altering their vehicle in a manner which changes the original manufacturer's design (e.g., serial number, tires, suspension, steering wheel, timing, parking lamps, exhaust system, etc.) after completing the GOJ/JCI vehicle inspection.

4.2.12.1. Vehicle owners/operators with defective, noncompliant, or illegally modified vehicles will be issued a DD Form 1408, *Armed Forces Traffic Ticket*, and instructed to correct the violation. Individuals will also be instructed to maintain a copy of the ticket with the vehicle until the correction is made, and will present the ticket to any Security Forces member if subsequently stopped for the same violation within 72 hours. Security Forces personnel will not issue an additional ticket for the same vehicle defect if the operator presents a previous citation and is still within the 72 hour window. Unit commanders, agency chiefs, or first sergeants are responsible for ensuring owners correct defective, noncompliant or illegally modified vehicles. Anyone who cannot comply within 72 hours must not drive the vehicle, or they may be issued subsequent Armed Forces Traffic Tickets.

4.2.12.2. Any bumper sticker, decal, or other vehicle marking which is contrary to good order and discipline or otherwise violates the Uniform Code of Military Justice or other applicable directives and regulations is prohibited. Security Forces will handle issues dealing with this paragraph in the same manner as a traffic complaint. The complaint will be taken, a blotter entry made and the issue will be forwarded to the unit commander, agency chief, or first sergeant.

4.2.12.3. Vehicle windows will not have any tint on the windshield, driver, or passenger front door windows unless it is factory tint. Vehicle windows must be clear and free of debris, mud and dirt.

4.2.12.4. Vehicle rear windows, passenger back door windows may be tinted or darkened to zero percent.

4.2.12.5. Vehicles that have four doors may tint the windows on the back doors. For vehicles without four doors, the rear quarter panel windows may be tinted.

4.2.12.6. Vans may tint all windows except for the windshield, driver, and passenger front door windows.

4.2.12.7. Defective vehicles with obvious safety defects will not be operated (e.g., missing fenders, bumpers, bald tires, inoperative head lights, broken seat belts, cracked or shattered windows, defective transmission/brakes, etc.). It is the responsibility of the owner to correct and pass a routine safety inspection at all times. Vehicles not able to pass a routine inspection are subject to administrative hold or vehicle impoundment. Security Forces personnel may occasionally conduct vehicle safety inspections at base entry points or other locations on the installation as recommended by the DFC, and approved by the 35 FW/CC or designee.

4.2.12.8. Vehicles will not be operated with the windshield removed, shattered, obstructed (i.e. stickers, decals, etc.). Off-road vehicles with flip-down windshields must have the windshield in the up position while operated on any paved roadway. Additionally, the vehicle operator's direct/assisted sight through the rear window will not be obstructed in any way. **Exception:** GOJ and associated decals required for vehicle registration.

4.2.12.9. A vehicle will not be operated with a loud muffler (e.g., louder than factory installed system), straight pipes, defective mufflers, or without a muffler. Mufflers, covers, or tail pipes may not extend out beyond the body of any privately owned vehicle.

4.2.12.10. Vehicles will not be operated on the roadways with tires that show defects, bald spots or when the tire tread is worn below 1/16 of an inch.

4.2.12.11. Vehicles will not be operated on the roadways without proper traction control devices (snow tires or all weather tires) from 15 November to 31 March.

4.2.13. Inoperative Vehicles. In the event a vehicle becomes inoperative, the operator or owner will ensure:

4.2.13.1. The vehicle is moved off the roadway out of the flow of traffic.

4.2.13.2. The 4-way flashers and parking lights are turned on, if possible, as needed.

4.2.13.3. The hood of the vehicle is raised and displays an emergency warning reflective triangle or a like device to warn on-coming traffic of the hazard.

4.2.13.4. The BDOC is notified (226-3600/4358) of the vehicle location, type, and license plate number.

4.2.13.5. Vehicles illegally parked or blocking the flow of traffic will be immediately removed by the owner. Vehicles that are not moved will be towed and impounded in the temporary holding lot. Payment for the tow bill must be made prior to Security Forces releasing the vehicle.

4.2.13.6. Inoperative or wrecked vehicles will not be left in parking lots, roadways, or other areas. **Exception:** Repair facilities such as the Auto Hobby Shop or Army and Air Force Exchange Service (AAFES) when the repair will be made at the specified facility.

4.2.14. Pedestrian traffic. All motor vehicle operators will be cognizant of regulations regarding pedestrian traffic and associated safety requirements. The following rules apply to pedestrians:

4.2.14.1. Joggers and walkers are considered to be pedestrians. Pedestrians share certain rights and duties as road users and are subject to certain traffic controls, signs and devices, which must be complied with.

4.2.14.2. Except where designated to the contrary, yield the right-of-way to all motor vehicles and non-motor vehicle traffic.

4.2.14.3. Children will not play in streets or leave toys in the street, driveways, or on sidewalks.

4.2.14.4. Pedestrians have the right-of-way on all sidewalks.

4.2.14.5. When crosswalks are available, pedestrians will cross the roadway only at the crosswalk and only once they are certain vehicle operators have noticed their presence.

4.2.14.6. Pedestrians crossing at unmarked (no cross walk) intersections with traffic lights will not interfere with the smooth flow of traffic. Pedestrians can be issued a citation in the event their unsafe attempt to cross a road without using a crosswalk causes or almost causes an accident.

4.2.14.7. When no pedestrian crosswalk is available, yield to traffic and do not cross until traffic has passed or comes to a complete stop and the driver is aware of the pedestrian's intentions to cross the road.

4.2.14.8. Do not leave the curb and assume the right-of-way over traffic when such traffic is so close it would create a potential hazard.

4.2.14.9. Pedestrians will yield right-of-way to vehicle traffic and when crossing the road will cross at a 90° angle (straight across) minimizing impact on the flow of traffic. Cross all roadways in the most expeditious and safe manner and do not linger in the roadways or in a designated crosswalk when crossing the street.

4.2.14.10. When sidewalks are not available, pedestrians will walk on the outermost edge of the road or shoulder facing the flow of traffic and in single file. Available sidewalks must always be used.

4.2.14.11. Pedestrians will not impede traffic through personal carelessness or with any type of obstruction.

4.2.14.12. Hitchhiking on base is prohibited except at authorized share-a-ride shelters.

4.2.14.13. Do not consume alcohol or carry open containers of alcohol while in public, except at special base-sponsored events where alcohol is sold and authorized by the installation commander, according to AFI 34-219, *Alcoholic Beverage Program*. **NOTE:** MAB offers a wide variety of safe rides home and they should be taken advantage of for personal and public safety.

4.2.14.14. Pedestrians will yield to all responding emergency vehicles.

4.2.14.15. Joggers and runners exercising on the roadways will wear reflective material on their upper body from sunset to sunrise or during conditions of reduced visibility. The reflective material may be a reflective belt, reflective vest, or highly reflective clothing.

4.2.14.16. Joggers and runners will run on the outermost edge of the roadway and not interfere with the flow of traffic. Run facing on-coming traffic and remain off the road surface when possible. When a sidewalk is present, joggers and runners will use the sidewalk, but not interfere with pedestrian traffic.

4.2.15. Motorcycle and all-terrain vehicle (ATV) operations. Before riding a motorcycle on MAB, operators must familiarize themselves with the guidelines of AFI 31-218(I), USFJI 31- 205, AFI 91-207, and this instruction. In addition, motorcycle riders must receive motorcycle oriented training that mirrors the initial 4 wheel vehicle training unless the rider is a Japanese National who has a current motorcycle license/endorsement. SOFA status personnel must complete an approved Motorcycle Safety Foundation (MSF) course prior to operating a motorcycle. MSF courses are offered through 35 FW/SE. Motorcycle operators must possess a USFJ Form 4EJ indicating the size of motorcycle the operator is licensed to operate and if passengers are permitted.

4.2.15.1. Headlights. Headlights will be turned on while motorcycles and ATVs (those equipped with headlights) are being operated.

4.2.15.2. Rear-view mirrors. Motorcycles will have both left and right rear view mirrors mounted on the handlebar and fairing (not required for tactical or off-road motorcycles not operated in a traffic environment).

4.2.15.3. Passengers. Passengers are not authorized on government owned motorcycles and ATVs unless they are specifically designed (as determined by the manufacturer) to carry a passenger and there is a valid operational need for the passenger to ride with the operator.

4.2.15.4. Personal protection equipment (PPE). All personnel operating or riding a motorcycle on MAB and all SOFA personnel operating or riding a motorcycle off the installation will wear the appropriate PPE.

4.2.15.4.1. Head protection. A helmet designed to meet or exceed Department of Transportation (DOT) standards, shall be worn and properly fastened under the chin. Host nation equivalent is acceptable if it meets or exceeds the DOT standard. Commanders may authorize use of tactical helmets in appropriate off-road training or operating environments after completing an operational risk management (ORM) evaluation.

4.2.15.4.2. Eye protection. Goggles, wrap-around glasses, or a full-face shield (properly attached to helmet) designed to meet or exceed American National Standards Institute (ANSI) Standard Z87.1 for impact and shatter resistance will be worn. A windshield does not constitute proper eye protection. Host nation equivalent is acceptable if it meets or exceeds ANSI Standard Z87.1 for impact and shatter resistance.

4.2.15.4.3. Protective clothing. Wearing of long-sleeved shirt or jacket, long trousers, and full- fingered gloves is required. Gloves or mittens will be made from leather or other abrasion-resistant material. Wearing of a motorcycle jacket and pants constructed of abrasion resistant materials such as leather, Kevlar® and/or Cordura® containing impact absorbing padding is strongly encouraged. Riders should select PPE that incorporates fluorescent colors and retro-reflective material.

4.2.15.4.4. Foot protection. Riders will wear sturdy over the ankle footwear that affords protection for the feet and ankles (durable athletic shoes that cover the ankles may be worn). Sandals, low quarter sneakers, and similar footwear will not be used.

4.2.15.4.5. All on-duty riders of motorcycles and ATVs during off-road operations should also wear knee, shin guards, and padded full-fingered gloves. Security patrol requirements may dictate limited compliance.

4.2.15.5. Motorcycles will not overtake and pass in the same lane occupied by the vehicle being passed. Otherwise follow the rules of the road for other motor vehicles.

4.2.15.6. Motorcycles are entitled to full use of the lane and will not be operated side by side, between lanes of traffic or between adjacent lanes or rows of vehicles (i.e. driving between vehicles stopped at a traffic light). No motor vehicle will be driven in such a manner as to deprive any motorcyclist of this entitlement. Additionally, motorcyclists will not drive on the unpaved shoulder of the road or to the left of single lanes of traffic.

4.2.15.7. A passenger may ride on the permanent and regular seat of a motorcycle or moped only when the vehicle is designed for two persons. The passenger must be at least 10 years old and his or her legs must be long enough so their feet can rest on the passenger's foot pegs.

4.2.15.8. All packages and bundles must be secured to the motorcycle, moped, or person in such a manner that it will not interfere with the proper and safe operation of the motorcycle.

4.2.15.9. Motorcycles will not be operated in a swerving fashion from within a single lane.

4.2.16. Non-Motorized Vehicles. **NOTE:** motor vehicle operators will be cognizant of regulations regarding non-motorized vehicle traffic and associated safety requirements. Bicycle riders, skaters, roller skates, roller blades, skate boards, scooters, unicycles or other manually operated wheeled vehicles, when utilizing roadways are subject to this instruction, AFI 91-207, and the following:

4.2.16.1. Bicycles operated on base roadways will be operated in a single file, with the flow of traffic, and as far to the left side of the roadway as safely possible. Bicyclists are considered part of the traffic when operating on roadways and must comply with the established rules of the road.

4.2.16.2. Bicycle operators and passengers are required to properly wear (snapped/buckled/fastened IAW manufacturer's design) an approved safety helmet.

4.2.16.3. All persons who ride a bicycle on MAB roadways will wear a highly visible outer garment during the day and outer garment containing retro-reflective material at night. The rider must also have a front and rear light for visibility during the hours of darkness.

4.2.16.4. Passengers will not ride on bicycles unless it is equipped with a seat and footrests for each person.

4.2.16.5. Bicycle riders will not carry any article that prevents them from keeping at least one hand on the handlebars and in full control of the bicycle.

4.2.16.6. All bicycles must be equipped with at least one brake applied to the rear wheel.

4.2.16.7. Vehicles will not tow bicycle riders, skaters, roller skates, roller blades, skate boards, scooters, unicycles, or other manually-operated wheeled vehicles, and operators of these non- motorized vehicles will not cling to any moving motorized vehicle.

4.2.16.8. Bicyclists, scooters, skaters, or other non-motorized vehicles will not attempt or do tricks or stunts on base roadways, sidewalks, parking lots, or public thoroughfares.

4.2.16.9. The owner, parent, and/or guardian is responsible for ensuring bicycles, scooters, roller blades, skateboards, and other non-motorized vehicles operated on base roadways are in safe condition and proper safety equipment is worn. Safety equipment for skaters must be IAW AFI 91-207 and this instruction. Wearing other protective equipment is highly encouraged.

4.2.16.10. Parents or guardians of bicycles, skaters, scooters and other non-motorized vehicles are responsible for instructing dependents on rules of the roadway and general safety.

4.2.16.11. Bicyclists, scooters, skaters or other non-motorized vehicles will not wear portable headphones, earphones, or other listening devices.

4.2.16.12. People on base using skates, roller skates, rollerblades, skateboards, or non-motorized scooters may cross roadways and operate on roadways only when sidewalks are not available and must follow rules established for pedestrian traffic. Do not ride on a sidewalk if riding would cause other pedestrians to dodge or move out of the way. People using roller skates, roller blades, skate boards, or non-motorized scooters may use on-base roadways during daylight hours in housing areas when no vehicular traffic is present.

4.2.16.13. Skaters may use large parking lots during low-use periods, but will not use on base roadways or parking lots during the hours of darkness. The use of sidewalks during the hours of darkness is permitted as long as it does not endanger pedestrian traffic and the individuals wear highly reflective clothing or a reflective vest.

4.2.16.14. Each operator of a non-motorized vehicle upon the roadway must be knowledgeable of all traffic control devices and signs. A claim of ignorance that results in an accident is not a defense.

4.2.16.15. Skates, roller skates, roller blades, skate boards, or non-motorized scooters will not be used on sidewalks and parking lots at any place of business during operating hours.

4.2.16.16. People using skates, roller skates, roller blades, skate boards, and non-motorized scooters will wear, as a minimum, the following safety gear:

4.2.16.16.1. Protective helmet equipped with an adjustable chin strap (chin strap must be properly fastened under the chin while wearing the helmet).

4.2.16.16.2. Kneepads, elbow pads, full fingered gloves, and palm pads are recommended.

4.3. Traffic Accident Investigations and Reports.

4.3.1. Any person who is involved in, witnesses, or first arrives at the scene of a motor vehicle accident will notify Security Forces. For major vehicle accidents, immediately notify the BDOC via 911. For minor vehicle accidents, notify the BDOC at 226-3600 (Comm: 0176-77-3600). Witnesses at an accident scene will provide information requested by Security Forces and will remain on scene until released.

4.3.1.1. When requested by Security Forces, 35 LRS may tow disabled vehicles when the vehicle presents a roadway safety hazard. A Security Forces member will be present to witness the tow and 35 LRS will only tow the vehicle to a point where it does not pose a hazard. It is the owner's responsibility to ensure their vehicles are removed immediately or it may be impounded by Security Forces. If the vehicle is needed for investigative purposes, Security Forces will arrange the tow and impoundment.

4.3.2. The following are classified as minor and major accidents:

4.3.2.1. Minor. Vehicle accidents with damage estimated at less than $10,000 and no injuries. Although minor vehicle accidents are classified as a reportable accident, they do not require a detailed investigation. Minor damage is further defined as the vehicle(s) being able to move under its own power, or may require minor on the spot maintenance to repair it; such as pulling away an object so the tire can move freely or changing or replacing a tire that may have deflated because of the accident. Alleged injuries not reported at the accident scene but subsequently treated or reported will not change the classification of a minor vehicle accident to a major vehicle accident. Individuals reporting alleged injuries after the fact will be instructed to provide all medical documentation to their insurance companies or other agencies requesting the information.

4.3.2.1.1. Security Forces will complete a 35 SF Form 0-13, *Minor Vehicle Accident Worksheet*. Minor vehicle traffic accidents are also recorded in the Security Forces blotter. Once the accident is recorded in the blotter, a copy will be routed to and maintained by the 35 SFS/S5RA office. If an insurance company adjuster requires a copy of the blotter entry on a minor vehicle accident, they may be provided one on an as-needed basis by the 35 SFS/S5RA office. Drivers do not get a copy of the accident report from Security Forces. They must report the accident to their insurance company within 3 duty-days and the insurance company will request and be provided a copy of the report.

4.3.2.1.2. Functional Damage. Damage to a vehicle that renders it unsafe or impractical to operate safely is considered functional damage rendering the accident to be classified as a minor accident. This may include flat or damaged tires, fender bent over the tire, or any other limited damage which can be immediately repaired causing the vehicle to be operationally safe when fixed. If the damage is so severe that major repair is needed before the vehicle can be operated safely again, it would be classified as having disabling damage and classified as a major accident.

4.3.2.2. Major. Vehicle accidents are classified as accidents that result in injuries or death (to include pedestrians), disabling functional damage, major property damage, or vehicle damage in excess of $10,000 USD. All major vehicle accidents require a detailed investigation by 35 SFS, including the completion of an AF Form 1315, Accident Report, and Air Force Justice Information System (AFJIS) generated AF Form 3545, *Incident Report*, accident narrative, field sketch, scale diagram (for death or serious injury). When available, a trained accident investigator should conduct major vehicle accident investigations. These reports should be completed within 3-duty days unless there are injuries involved or other extenuating circumstances.

4.3.3. Minor Vehicle Accident Response. Minor accidents occurring on the installation do not necessarily require 35 SFS response. The BDOC Controller will determine if 35 SFS response is required. If the BDOC controller determines a SF response is not required, the parties involved will report to the Security Forces (Building 646) to complete a minor accident report. At the discretion of the on-duty SF Flight Sergeant, 35 SFS will respond to off-base minor accidents and act as a liaison with Japanese National Police (JNP) when manning and weather conditions permit. (**NOTE:** SFS will respond to all minor vehicle accidents involving government vehicles or as directed by SF leadership).

4.3.4. Major Vehicle Accident Response. SFS will respond to all major vehicle accidents reports within their jurisdiction, including accidents occurring off the installation, where they will act as a liaison with JNP. **NOTE:** SFS may limit responses on a case-by-case basis due to distance and manpower. 35 FW/JA may also be contacted to assist the member by providing them with a SOFA briefing.

4.3.5. Reporting Procedures. Any driver or owner of a vehicle involved in an accident will notify and submit a written report to the BDOC at Misawa AB. Failure to report this information within the timeframes identified below may result in being cited by 35 SFS personnel.

4.3.5.1. Accidents on Base. The driver or owner of any vehicle involved in a minor accident on base will immediately notify and submit a written report to the BDOC for the minor vehicle accident. For major vehicle accidents, the driver or owner of the vehicle will immediately notify the BDOC, and submit a written report within 24 hours of the accident.

4.3.5.2. Accidents off Base. The driver or owner of any vehicle involved in a minor accident off base will immediately notify JNP. In addition, the driver or owner of the vehicle will immediately notify and submit a written report to BDOC. For major vehicle accidents, the driver or owner of the vehicle involved will immediately notify JNP and law enforcement personnel of the nearest military installation. Notify and submit a written report within 72 hours of the accident to the BDOC.

4.3.6. Government Vehicle Operators will, in addition to the above:

4.3.6.1. Refrain from making oral or written statements to anyone involved in the accident, or to the agents or representatives of anyone involved in the accident, regarding the cause of the accident, liability, the possibility of pursuing a claim, or the possibility of approval of any claim.

4.3.6.2. Complete SF Form 91, Motor Vehicle Accident Report at the scene of the accident and deliver it to the 35 LRS Vehicle Management, Customer Service Office NLT 24 hours after the accident. If the accident occurs on a weekend or holiday, then the SF 91 must be delivered NLT noon on the first duty day following the accident.

4.3.6.3. Render reasonable assistance to injured parties and summon an ambulance, if needed.

4.3.6.4. Report the accident to the appropriate civilian police agency and to 35 SFS immediately.

4.3.6.5. Properly identify themselves to police authorities and persons directly involved in the accident investigation.

4.3.7. The following agencies are authorized to access accident data for official use only:

4.3.7.1. All commanders and first sergeants of individual(s) involved in the accident and Unit VCO's when a GOV is involved.

4.3.7.2. 35 FW/SE.

4.3.7.3. 35 FW/JA.

4.3.7.4. Navy Air Facility Misawa (NAFM) Safety.

4.3.7.5. Insurance companies must request the report in writing from 35 SFS/S5RA.

4.3.7.6. All other requests must be made by initiating a request IAW the Freedom of Information Act (FOIA).

4.3.8. When removing a wrecked or damaged vehicle from the roadway, any glass or other material, which has dropped from the vehicle, will be removed by the owner(s) or tow agency of the vehicle(s).

4.4. Parking. Parking on MAB is authorized only in areas specifically designated for parking, with the exception of emergency response vehicles identified in **paragraph 4.4.2** Authorized parking areas are designated through the use of two white lines separating the parking spaces. Emergency response vehicles (as defined in this instruction), when on official business, are always considered legally parked, with or without the two white line markings.

4.4.1. It is prohibited to:

4.4.1.1. Park in any area not designated by two white lines as a parking area.

4.4.1.2. Park on a sidewalk or in any place blocking a driveway, entrance, exit way or legally parked vehicle.

4.4.1.3. Park in such a manner that blocks a traffic control device.

4.4.1.4. Park within 15 feet of an intersection.

4.4.1.5. Park within 20 feet of a fire hydrant, Fire Department connection or sprinkler connection.

4.4.1.6. Park within 15 feet of a building except where specifically marked.

4.4.1.7. Park within 50 feet of a fire station driveway. This prohibition does not apply to clearly marked emergency vehicles.

4.4.1.8. Park on or within 15 feet of a crosswalk.

4.4.1.9. Park in such a way that blocks a dumpster or similar refuse collection container or building.

4.4.1.10. Park adjacent to roadway construction in such a manner that blocks traffic.

4.4.1.11. Double-park, that is, park in front of or the rear of any vehicle preventing free movement to exit. This violation also applies to a vehicle parked adjacent to another vehicle that is legally parked and the violating vehicle is not in a designated marked parking space. This also includes parking in an already occupied parking space just because your vehicle can fit (i.e. motorcycle already parked). However, two motorcycles can be parked in the same parking space as long as they both can safely enter/exit the parking spot.

4.4.1.12. Park against the flow of traffic. In areas where the flow of traffic is not clear assume the flow of traffic is following the circle to the left. However, Security Forces will not cite unless the vehicle in question is inhibiting traffic in some way.

4.4.1.13. Park on seeded, grassed, or unpaved areas not designated for parking (includes housing).

4.4.1.14. Park at any reserved parking space that is officially designated for another.

4.4.1.15. Park beyond the designated time limits in designated time limit parking areas.

4.4.1.16. Park beyond 72 hours in public parking lots other than designated long term parking areas.

4.4.1.17. Park in any marked fire lane. The entire driveway of tower buildings is considered a fire lane. No vehicle, other than emergency response vehicles or personnel actively loading or unloading vehicles, may be left unattended at any time in these areas.

4.4.1.18. Park in slots designated for the handicapped without a handicap decal displayed on or in the vehicle.

4.4.1.19. Park within 30 feet of a bus stop.

4.4.1.20. Leave a parked vehicle unattended with the engine running. Unattended means the operator can no longer see the vehicle or is beyond 25 feet away. **Exception:** Emergency or mission essential government vehicles on official business. During winter periods, vehicles may be left running unoccupied outside of personal residence or personal work center for no more than 20 minutes to warm up the engine prior to operating.

4.4.1.21. Park in slots designated for childcare drop-off or pickup unless doing same.

4.4.1.22. Where parallel parking is authorized, park vehicles parallel more than 12 inches from the left curb. Where there is no curb, drivers must park vehicles as far left as the hard surface permits. Angular parking is authorized only where painted lines indicate this style of parking. Vehicles will not be backed into an angular parking slot.

4.4.1.23. In areas where spaces are provided for two-wheel vehicle parking, operators of these vehicles should use these designated parking slots first.

4.4.1.24. Parking on the side of any road (to include in base housing) in an unmarked parking spot is prohibited when doing so does not leave at least a 12ft driving lane for one way roads and 20ft of driving lanes on two way roads. Emergency vehicles must be able to utilize the road unimpeded.

4.4.2. Emergency Response Vehicle Parking. Emergency response vehicles are able to park in any available spot or location to support emergency or official responses, taking into consideration as best as possible to avoid blocking handicap ramps, flow of traffic, etc. During non-emergencies, emergency response vehicles may park in any available parking spot or location that does not impede other emergency responses, block roads, pedestrian walkways, and/or handicap ramps in order to expedite a response if notified of a situation that is assessed to be an emergency.

4.5. Reserved Parking. Reserved parking spaces are designated to meet essential mission requirements and will be held to an absolute minimum. Reserved parking is for unit personnel only if it is necessary to ensure that parking is available in the immediate area. This approach will make the limited parking spaces available to the base population. Reserved parking spaces are reserved 24 hours a day, with the exception of customer parking. Customer reserved parking spaces are reserved only during the operating hours of the facilities concerned. Reserved parking should not exceed 10 percent of the total parking spaces at each facility. **NOTE:** This rule does not apply to housing.

4.5.1. Reserved parking spaces are automatically authorized for the following personnel or vehicles:

4.5.1.1. Installation commander, 35 FW/CV, and 35 FW/CCC throughout the installation as required/needed.

4.5.1.2. Group Commanders, Deputy Group Commanders, and Group Superintendents or service equivalent at their primary duty location as defined by the location of their office; to include the 35 FW Headquarters (Building 507) and Collocated Club (Buildings 485 and 486).

4.5.1.3. Unit commanders, Enlisted Managers/Superintendents (E-9), and first sergeants, or service equivalents, at their primary duty location as defined by the location of their office.

4.5.1.4. General Officers/DVs throughout the installation as required/needed. General Officer and DV reserved parking will be marked using temporary signs for the duration of their visit.

4.5.1.5. Colonels/O-6 and CMSgt/E-9 at the Collocated Club, Base Exchange, and Commissary.

4.5.1.6. Government vehicles supporting sortie generation, major accident response, or emergency response (Fire, Police, or Medical).

4.5.1.7. Customer parking with specified time limits, not to exceed 20 minutes.

4.5.1.8. Disabled or handicapped individuals using an approved handicapped decal issued by 35 SFS/S5PR.

4.5.2. Parking Monitor program. Unit commanders are responsible for enforcing parking within areas under their control.

4.5.2.1. Parking may be delegated by individual unit commanders, in writing, for participation in the program. 35 SFS/S5RA will be provided a letter with the current monitors and facilities enforcement is authorized. 35 SFS/S5RA will maintain the letter on file. The letter will specify a minimum of one primary and alternate in the grade of E-5 or above. In the case of multi-use buildings (e.g. Torii Bldg.) only building custodians will be allowed to issue DD Form 1408, *Armed Forces Traffic Tickets* in their designated area. Parking monitors are the commander's representative to issue citations for parking violations in areas under the control of their commander. Monitors will issue parking tickets via DD Form 1408.

4.5.2.2. The special instructions on the back of the pink copy will direct the violator to contact the parking monitor who issued the ticket within 24 hours or the next duty day. Monitors will provide contact information on the tickets to enable violators to provide information necessary to complete the citation. When contacted by the violator, the parking monitor will fill in any missing data in sections 1-10. Parking monitors will only issue tickets for areas under the control of their commander.

4.5.2.3. Parking monitors will return the white and yellow copy of the issued ticket to 35 SFS/S5RA within 5-duty days of being written. Tickets that are incomplete or were written by personnel not designated as parking monitors will not be processed and will be returned to the unit.

4.6. Blood Alcohol Concentration Standards.

4.6.1. Vehicle operators are considered "Professional Drivers" under Japanese law. This holds vehicle operators to a negligence driving standard. Negligent driving may be considered criminal conduct under Japanese law.

4.6.2. If stopped off base by the Japanese Police while operating a motor vehicle for any reason, and signs of intoxication are observed or an odor of an alcoholic beverage is emitting from the vehicle operator, the individual and all passengers can be charged with alcohol-related offenses under Japanese law. If personnel are stopped for any reason on-base or in areas where USFJ law enforcement personnel have jurisdiction and signs of intoxication are observed, or an odor of an alcoholic beverage is emitting from the vehicle operator, the individual and all passengers may be subject to disciplinary or administrative action.

4.6.3. Security Forces will complete a AFJIS incident report for DUI for 0.03% or greater Blood Alcohol Content (BAC). This applies to both on or off base incidents, or when an operator refuses to provide a sample, but circumstances indicate the presence of alcohol.

4.6.3.1. Incidents involving drinking and driving where alcohol is detected, and pre-exit tests and/or Standardized Field Sobriety Testing (SFST) reveals a lack of indicators for DUI/Intoxicated Driving, Security Forces may request the operator to consent to a breath sample using a Preliminary Breath Test (PBT) from the National Highway Traffic Safety Administration (NHTSA) Conforming Products List of Alcohol Screening Devices for use as additional probable cause.

4.6.3.2. Refusal to submit to one of the aforementioned tests (breath, blood, or urine) is considered refusal of the implied consent rule. Vehicle operators refusing to consent to a test of their blood alcohol content by one of the previously listed methods will have their driver's license immediately confiscated IAW **paragraph 2.5**, and will lose their driving privileges for a period of 1 year in addition to any other violation measures.

4.6.3.3. To determine probable cause for drivers suspected of DUI (GOJ equivalent equating to Intoxicated Driving), Security Forces personnel incorporate results from three SFST, a Horizontal Gaze Nystagmus (HGN) test, a One-leg Stand, and Walk and Turn test, observation, and the ability of a suspect to follow simple instruction cues. All SFSTs will be recorded on the DD Form 1920, *Alcohol Incident Report*. In addition to the SFST, properly trained SF members may use a PBT device as a tool to determine probable cause for drivers suspected of DUI (GOJ equivalent equating to Intoxicated Driving).

4.7. Overtaking and Passing.

4.7.1. Passing on MAB is prohibited. Exception: passing on the right of a slow moving GOV is only authorized when the GOV has moved to the left and the traffic is clear.

4.8. Turning, Stopping, and Signals When Stopping and Turning.

4.8.1. The operator of a motor vehicle will:

4.8.1.1. Left Turn. Make the approach for the left turn and the execution of the turn as close as possible to the left-side curb or edge of the roadway. Left turns at red traffic lights are authorized only where posted on MAB. Once a vehicle comes to a complete stop, the driver ensures the lane of traffic is clear and there is no sign prohibiting a turn on red.

4.8.1.2. Right Turn. Approach the turn in the right-side lane or as close to the centerline as possible. Initiate the turn when clear to do so and leave the exiting roadway to enter the lane adjacent to the center line (right lane). Do not cross into the oncoming lane or impede the traffic therein.

4.8.1.3. U-Turns. U-turns are prohibited on MAB unless posted with a sign specifically allowing a U-turn. **Exception:** emergency response vehicles performing official duties.

4.8.1.4. Turning Movements and Required Signals**.** If intending to make a left or right turn, continuously signal the intention at least 100 feet before executing the turn.

4.8.2. Use hand and arm signals while operating a bicycle or motor vehicle that is not equipped by the manufacturer with turn signal devices.

4.8.3. There are special occasions when vehicle operators are required to yield and stop, often without warning. The most common occurs when retreat sounds. All vehicle operators will: immediately and safely come to a complete stop; pull to the left shoulder of the road or where stopped and remain stopped. When the first note of the Japanese/American National Anthem starts, turn on emergency flashers and do not continue to drive. Proceed safely only after the completion of the last note of the US National Anthem.

4.9. Speed Limits.

4.9.1. Speed Limits. 35 SFS monitors the speed of traffic on the installation by utilizing speed-measuring devices and vehicle pacing. Speed restrictions are listed in **Table 1**.

Table 1. Speed Restrictions (unless otherwise posted).

LOCATION:	MPH	KPH
All roadways, except where posted	25 MPH	40 KPH
Maximum speed of mopeds or motorcycle less than 50cc	18 MPH	30 KPH
Parking Lots	9 MPH	15 KPH
Passing Troop movements	12 MPH	20 KPH
Residential areas	18 MPH	30 KPH
Road Construction	9 MPH	15 KPH
Sollars, and Cummings School Zones	15 MPH	25 KPH
Edgren School Zones	18 MPH	30 KPH
Vehicles in tow, with approved equipment	18 MPH	30 KPH
NOTE: all traffic tickets written for speeding both on/off base in Japan are written in KPH.		

4.9.1.1. Drive slower than the posted speed limit under the following situations:

4.9.1.1.1. Inclement weather.

4.9.1.1.2. When approaching or following a military convoy or troop movement.

4.9.1.2. Do not operate a moped at a speed in excess of 40 KPH (25 MPH).

4.9.1.3. Off-base maximum speed for a moped or motorcycle (less than 50cc) according to Japanese traffic law is 30 KPH (19 MPH).

4.9.1.4. Do not operate a motor vehicle when:

4.9.1.4.1. On a public or private roadway at a speed less than 10 KPH or unless posted as such.

4.9.1.4.2. Too slowly as to impede the safe, smooth movement of traffic or create a potential traffic hazard.

4.9.1.5. Security Forces may control speed of vehicle traffic on the installation by means of Radio Detection and Ranging (RADAR) or Light Detection and Ranging (LIDAR).

4.9.1.5.1. 35th Security Forces Squadron training section is authorized to implement their own training program IAW AFI 31-218 para 4-4.b, and the speed measuring device manufacturers instructions.

4.9.2. Authorized vehicles on the MAB airfield are as follows IAW AFI13-213_35FWSUP, *Airfield Driving*:

4.9.2.1. Government motor vehicles in the performance of official duties.

4.9.2.2. Privately owned vehicles possessing a flight line POV pass in the performance of official duties.

4.9.2.3. Rental vehicles utilized by deployed personnel possessing a flight line POV pass in the performance of official duties.

4.9.2.4. Contractor vehicles possessing a flight line POV pass in the performance of contracted duties.

4.9.2.5. Unit owned bicycles can be used on the parking aprons in the performance of assigned duties provided the operator has an AF Form 483, *Certificate of Competency*. Bicycles will have a suitable braking device engaged when parked on the flight line. Night operation requires an operational headlamp, tail lamp, and reflectors or reflector tape. Unit owned bicycles used in flight line operations are counted as equipment and must be operated in a safe manner.

4.9.2.6. Golf-cart type or similar utility vehicles will follow all rules established for general and special purpose vehicles and will be equipped with forward and rear lamps if operated at night. The operator will have an AF Form 483.

4.9.3. Unauthorized airfield vehicles.

4.9.3.1. Motorcycles.

4.9.3.2. Mopeds.

4.9.3.3. Two-wheeled scooters.

4.9.4. Speed Limits: no vehicle will be operated at a speed in excess of that deemed reasonable and prudent for existing traffic, road, and weather conditions and will be IAW AFI13- 213_35FWSUP, *Airfield Driving*.

4.10. Movements of Loads Upon Roadways. Drivers who plan to move cargo upon the roadway must be aware of load capacities and other related requirements for the safe movement of cargo in or on their vehicle and others present upon the roadway.

4.10.1. Move cargo on roadways in motorized vehicles only when following these rules:

4.10.1.1. Do not overload vehicles when moving cargo.

4.10.1.2. Do not carry cargo if it is not secured to the vehicle. **NOTE:** drivers, who lose a load upon the roadway, may be issued a ticket for "Failure to Secure Load".

4.10.1.3. If a truck or trailer has no sides or tailgate, cargo must be securely strapped to the truck bed.

4.10.1.4. If mounted cargo is higher than the truck sides/railings or tailgate, cargo must be securely strapped to the truck bed.

4.10.1.5. Loaded cargo must not obstruct the drivers vision to the front or sides. Mirrors, visible to the driver, must be used to view both sides of the vehicle.

4.10.1.6. If mounted cargo extends up to four feet beyond the rear of the vehicle length, display a highly visible/reflective flag or material from the end of the farthest extended object. The flag must be visible from a distance of at least 500 feet. If mounted cargo extends beyond four feet from the rear of the vehicle length, flashing lights visible from 500 feet must be attached from the end of the farthest extended object. Vehicles with cargo extending beyond the sides or front of the vehicle must display wide load signs, both in back and front, and have a warning beacon with a 360 degree view visible from 500 feet.

4.10.1.7. Trailers being towed by tugs will not be loaded so high as to prevent the tug operator from seeing the whole length of the trailer while in a seated position.

4.11. Towing of Vehicles.

4.11.1. Vehicles must be towed by a tow truck or using a commercially designed tow bar. Ropes, belts, chains, straps or facsimile of these will not be used to include military emergency tow ropes. Vehicles in tow must have rear flashing lights working on the vehicle or attached to the rear of the vehicle unless being towed by a commercial tow truck.

4.12. Miscellaneous Roadway Operations. All operators must:

4.12.1. Ensure all operators and passengers of GOVs and POVs wear restraint systems on and off the installation at all times while the vehicle is in motion.

4.12.2. Not straddle the centerline of the roadway.

4.12.3. Only cross the centerline when executing an authorized pass or turning movement.

4.12.4. Do not use the sidewalk as a means of travel unless the area is designated as a temporary roadway.

4.12.5. Not operate a vehicle if passengers are riding on top of cargo.

4.12.6. Vehicle owners will not paste or stick any items on the windshield, front driver side, or passenger side windows except the following:

4.12.6.1. Permanent or temporary vehicle inspection stickers.

4.12.6.2. A periodic vehicle maintenance certificate.

4.12.6.3. Insurance sticker provided under the Automobile Damage Compensation Guarantee Law (JCI Sticker).

4.12.6.4. USFJ Form 15B, *Vehicle Registration Decal. (For Use on 2-Wheel Vehicles).*

4.12.6.5. Temporary vehicle pass, other passes or decals issued by a government agency which are required to be displayed on the windshield.

4.13. Emergency Response Vehicles.

4.13.1. Emergency vehicles must have operational audio and visual warning equipment installed.

4.13.2. When responding to emergencies using visual, or both, emergency vehicles may:

4.13.2.1. Request the right of way only when it can be done without endangering personnel or property.

4.13.2.2. Proceed through stop signs or traffic lights only when it is safe to do so.

4.13.3. During emergency vehicle response modes, all non-emergency vehicles must:

4.13.3.1. Yield the right-of-way to all emergency-responding vehicles by pulling off the roadway as far left as possible to ensure a clear and safe passage for responding vehicles.

4.13.3.2. Not follow any emergency vehicle within 500 feet.

4.13.3.3. Not stop or park within 500 feet of the scene of a fire response when emergency vehicles are already on scene.

4.13.3.4. Not drive over fire hoses stretched across the roadway at the scene of a fire response unless directed to do so by an on-scene traffic controller.

4.14. Unattended Children in Vehicles.

4.14.1. The following are the standards for the safety and welfare of children left unattended in vehicles IAW WEASEL NOTAM – 35 FW-19-00, *Misawa Air Base Community Standards*:

4.14.1.1. Age of Child: Newborn to 6 Years of Age: Never left unattended in a vehicle.

4.14.1.2. Age of Child: 7 - 9 Years of Age: May be left unattended in a vehicle with the keys removed and handbrake applied not to exceed 15 minutes.

4.14.1.3. Age of Child: 10 - 11 Years of Age: May be left unattended in a vehicle with keys removed and handbrake applied.

4.14.2. All cases will be referred to Family Advocacy and unit commanders for military members or MCAP for civilians/dependents. Consult 35 FW/JA for further guidance.

4.15. Vehicle Animal Safety.

4.15.1. At no time will pets sit on the vehicle operators lap while motor vehicle is in motion. All pets will remain in front passenger seat or rear seats while in transit. The vehicle operator must be able to positively control animals located in their vehicle through physical or verbal means at all times.

4.15.2. Animals will not be left unattended in vehicles for a period of time where the safety, health or well-being appears to be in immediate danger or could lead to distress (i.e. heavy panting, dark red tongue, vomiting or lethargy) from heat, cold, or lack of adequate ventilation and the conditions would be deemed hazardous by a reasonable person.

5. Driving Records and the Traffic Point System.

5.1. Driving Records. The 35 SFS/S5RA office oversees the maintenance of installation driving records and the integrity of the traffic point system. AFJIS is used to record vehicle traffic accidents, moving and parking violations, suspension or revocation actions, and traffic point assessments involving military and DoD civilian personnel, their family members, and other personnel operating motor vehicles on a military installation. Additionally, suspensions or revocation actions will be entered into DBIDS.

5.2. Traffic Point System. The traffic point system supplements AFI 31-218(I), and provides a uniform administrative process to impartially judge driving performance. All citations issued by a competent authority, to include, but not limited to, Japanese National Police (JNP), USAF Security Forces, Security Forces Augmentees, and properly trained parking monitors, will be logged in AFJIS and assess points, suspensions, or revocations as outlined in this instruction. The point system applies to all SOFA Status, Contract and Master Labor Contract personnel, to include their dependents, and all other individuals subject to this instruction operating a POV on or off the installation. This system is not a disciplinary measure or a substitute for punitive action and does not interfere with the installation commander or designee's prerogative to issue, suspend, revoke, deny or reinstate installation driving privileges IAW AFI 31-218(I), *Motor Vehicle Traffic Supervision,* and USFJI 31-205. Suspensions, revocations, and points are assessed for offenses on or off installation unless otherwise specified. **NOTE:** no points are assessed for revocation or suspension actions. Refer to **Attachment 3** of this instruction for specific points and suspension/revocation periods. The use of the point system and procedures prescribed herein are mandatory and will be handled IAW this instruction, AFI 31-115 and USFJI 31-205.

5.2.1. Traffic citation rebuttal process.

5.2.1.1. Tickets are rebuttable. Individuals who wish to rebut a ticket must report to 35 SFS/S5RA within 5 duty days of receiving the ticket and inform the office of his/her intent to submit a rebuttal. The violator must then draft a memorandum, specifically citing evidence that disproves the validity of the ticket (refer to **Attachment 8**).

5.2.1.2. 35 SFS/S5RA will not review or forward ticket memorandum rebuttals without the endorsement of the requesting members commander within 14 calendar days of receiving the ticket. Rebuttals will not be accepted if they are late, they are not for correctable and administrative errors on the violation or similar uncited violations of others.

5.2.1.3. The requesting members unit must route all ticket rebuttals through 35 SFS, 35 FW/JA, and 35 MSG/CC. The signed rescinded memo must be submitted to 35 SFS/S5RA for the traffic offense to be removed from members' records.

5.2.1.4. 35 MSG/CC will review the rebuttal package and make the final determination. The rebuttal package will then be returned to the 35 SFS/S5RA office, who will inform the commander, agency chief, or first sergeant of the final decision.

5.3. Point System Application.

5.3.1. The 35 SFS/S5RA office routinely receives notice/reports of off-base traffic offenses from all US Forces Japan law enforcement agencies, local GOJ law enforcement agencies and Continental United States (CONUS) law enforcement agencies. All tickets will be entered into the individuals driving record and based upon the ticket, points will be assessed against the individual if they operate a motor vehicle on MAB. IAW USFJ 31-205, the use of the point system and procedures prescribed herein are mandatory for on and off base offenses. The point system applies to civilian personnel (i.e., AAFES, DECA, DoDDS, DoD, dependents, contractors and all other SOFA status civilians) and all military personnel operating GOVs and POVs on and off the installation. It applies to all Local Nationals operating GOVs and POVs on MAB. The point system will be used for on and off installation citations and annotated on the individual's driving history. When two or more violations are written on a single occasion, points may be assessed for each violation. **NOTE:** Points are assessed from other agencies (both US and Japanese) to ensure drivers operate safely while outside the jurisdiction areas applicable to this instruction.

5.3.2. An advisory letter will be forwarded to the unit commander, agency chief, or first sergeant on any person who receives a citation on or off installation.

5.3.3. The Security Forces Liaison Office will coordinate all civil traffic matters with 35 FW/JA.

5.4. Point System Procedures.

5.4.1. The 35 SFS/S5RA office will record traffic violations and assess points IAW AFI 31- 218(I), AFI 31-115, USFJI 31-205, and this instruction in the following ways:

5.4.1.1. AFJIS generated AF Form 3545, *Incident Report.*

5.4.1.2. DD Form 1408, *Armed Forces Traffic Ticket.*

5.4.2. Traffic complaints. When a traffic complaint is received on an individual, the complainant must be willing to provide a written statement. Failure to provide a written statement or an adequate description of the vehicle (e.g., color, make, license plate number [i.e., HxxxYxxxx]) could result in no action being taken. Once a written statement is obtained, the incident will be recorded in the Security Forces blotter. Security Forces Operations personnel will follow up on the complaint when sufficient information has been provided. Complaints will be forwarded to the suspected violators' assigned unit for corrective action. Citations and/or traffic points will not be assessed for traffic complaints.

5.4.3. DD Form 1408, *Armed Forces Traffic Tickets.* Tickets are forwarded to the 35 SFS/S5RA office for processing and dissemination. Upon receipt of the traffic ticket or other law enforcement report, the unit commander, agency chief, or first sergeant will conduct an inquiry and take disciplinary action as appropriate. The commander will consider what disciplinary or administrative action to take. Upon receipt, the action is recorded on the back of the ticket. The commander's action must be returned to 35 SFS/S5RA for updating/filing within 14 calendar days of the original notice of the violation. Personnel who are issued a DD Form 1408 are required to report directly to their first sergeant, unit commander, or sponsor within 24 hours (as applicable; i.e. dependents would report the information to their sponsor).

5.4.3.1. Commanders must meet the established suspense time for completing actions on the DD Form 1408. Notify 35 SFS/S5RA of those cases requiring an extension.

5.4.3.2. The 35 SFS records traffic violations and assess points IAW this instruction as follows: for an offense that results in an apprehension, or is considered reckless driving, an AFJIS report, and/or supporting documents will be prepared. If the incident is an alcohol or drug-related driving offense and an observed traffic violation was the initial reason for contact, a DD Form 1408 will also be submitted. Points will be assessed IAW **Attachment 3**. Violations will be recorded on the DD Form 1408.

5.4.3.3. When two or more violations are committed on a single occasion, points will be assessed for each violation.

5.4.3.4. Points assessed against personnel will be inputted into AFJIS and will be managed IAW AFI 31-115, AFI 31-218(I), and USFJI 31-205.

5.4.3.5. Removal of points does not authorize removal of driving record entries for moving violations, chargeable accidents, suspensions, or revocations. Recorded entries will remain posted on individual driving records IAW AFI 31-218(I).

5.4.3.6. Personnel accumulating a total of 12 points within a one-year period, or 18 points within a 2-year period, will have their driving privileges suspended for 180 days. First sergeants, unit commanders, or sponsors will be notified of individuals who are subject to suspension/revocation.

5.4.3.7. When an individual has six or more points, the unit should consider whether the driver would benefit from attending the Driver Improvement Course IAW AFI 91-207. The course focuses on improving behaviors in operational traffic environments and is aimed at those drivers who have displayed a trend of poor driving behaviors such as a history of accidents, speeding, reckless driving, or poor driving attitudes or knowledge. The Driver Improvement Course should not be used as a punishment tool or for personnel that lost their driving privileges as a result of an alcohol/drug-related driving offense. Personnel required to attend the Driver Improvement Course must be scheduled through 35 FW/SE, 226-2706/3453.

5.4.3.8. Compliance violations may be issued for vehicle equipment violations. Violators have 72 hours to correct equipment violations, and bring his/her vehicle to BDOC to provide verification to an on-duty patrolman. Failure to comply with the 72-hour time limit will result in an assessment of points on the operator/owner's driving record.

5.5. Off-Installation Traffic Activities. Security Forces maintain a close liaison with Japanese Police agencies, and when possible, provides prompt notification to JNP when SOFA vehicle operators are involved in off-base accidents or incidents. If a non-SOFA member is involved in an accident or incident on base, 35 SFS will contact JNP. JNP will also provide prompt notice to SFS when SOFA vehicle operators are involved in traffic accidents or detained for serious violations of Japanese traffic laws. All SOFA personnel MUST provide JNP officials their DoD identification (ID) cards and USFJ Form 4EJ upon request. Geneva Convention cards do not meet this requirement (**NOTE**: Personnel are not authorized to provide Personally Identifiable Information (PII) on behalf of the member to a local national agency).

5.5.1. JNP notifies SFS of most minor infractions of Japanese traffic laws. Host nation traffic supervision operations may result in citations, arrest, fines, and vehicle impoundment. All fines and fees must be paid in yen by the required due date or the member may be subject to additional administrative actions.

5.5.2. When JNP notifies 35 SFS of a violation committed off base by personnel subject to this instruction, 35 SFS/S5RA assesses penalties according to **Attachment 3** of this instruction. 35 SFS/S5RA then forwards a notification of the alleged offense to the appropriate unit for the commander's action, including details on point assessment and suspension or revocation actions.

5.5.3. Personnel receiving the following off-base citations will accomplish the following upon coordination with the Staff Judge Advocate (35 FW/JA):

5.5.3.1. If the violator was given a copy of the ticket, they are only required to pay the fine. They have 7 days from the day after the citation is issued to pay the fine at a Japanese bank or Japanese Post Office. **NOTE:** always maintain the receipt as proof of payment.

5.5.3.2. Failure to pay the fine within the 7 day time period can result in arrest until the fine is paid. If fines cannot be paid within the 7 day period, personnel must immediately contact the 35 SFS/S5RA and 35 FW/JA. Personnel who fail to pay traffic fines by the suspense will have their driving privileges suspended for 30 days. **NOTE:** if a member wishes to rebut an off-base citation they must do so before they pay the fine. For further info, contact the 35 SFS/S5RA at 226-2241.

5.5.4. If the violator was given a red copy of the traffic ticket, they must retain the ticket until they are contacted to report to court. The Japanese prosecutor will contact 35 FW/JA, unit commander, first sergeant, or agency chief. Personnel who fail to report to their scheduled court date will have their driving privileges suspended for 6 months.

5.5.4.1. 35 FW/JA will coordinate with the violator's unit and subsequently place the violator on International Hold, pending adjudication. The violator is not permitted to depart the island on leave or TDY until the ticket is resolved. SOFA personnel requested to attend an interview with the Japanese police must first report to the legal office and obtain a briefing outlining the alleged violator's rights under the SOFA.

5.5.4.2. 35 FW/JA will provide 35 SFS/S5RA a monthly up to date listing of all personnel placed on International Hold.

5.5.5. Japanese Police Ticketing Procedures. 35 SFS/S5RA is notified by the Japanese Police anytime a SOFA member is issued a traffic ticket. Upon receipt of the citation, 35 SFS/S5RA will notify the unit first sergeant. On receipt of the traffic ticket or other law enforcement report, the unit commander, first sergeant, or a designated supervisor will conduct an inquiry. The unit commander must document the action taken against the violator and return the citation to 35 SFS/S5RA within 14 calendar days.

6. Impouding/Holding Privately Owned Vehicles.

6.1. General. Outlines procedures for the impoundment and disposal of abandoned, unclaimed, and other categories of Privately Owned Vehicles (POV) registered/owned by Status of Forces Agreement (SOFA) and non-SOFA personnel. Temporary vehicle impounds on MAB will be handled by Security Forces IAW this instruction. This chapter provides an outline of the standards and procedures regarding towing, inventorying, searching, impounding, and disposing of POVs.

6.1.1. The 35th Security Forces Squadron/Investigation (35 SFS/S2I) office is responsible for impounding all SOFA vehicles on and off MAB.

6.1.2. Personnel from 35 LRS/LGRDDO and 35 SFS/S2I are not liable for any damages incurred to any POV, NAF, DECA, or AAFES vehicle being towed or removed under these conditions.

6.2. Implied Consent to Vehicle Impoundment. As a condition of accepting driving privileges, drivers provide their consent for the removal and temporary impoundment of their POV IAW AFI 31-218(I), AFI 31-115, USFJI 31-205, and this instruction. Drivers/the last registered owner, also agree to reimburse an authorized agency or contractor for the cost of towing, storage and disposal should a need arise to remove or impound their motor vehicle.

6.3. Standards for Immediate Impoundment.

6.3.1. A vehicle will be impounded when it interferes with traffic, force protection measures, security of protective level resources, threatens public safety, is involved in criminal activity, contains evidence of criminal activity, is stolen/recovered, abandoned, has outdated administrative paperwork, is illegally parked, or meets any of the criteria covered hereafter**.** Impounding POVs is justified when any of the following conditions exist:

6.3.1.1. On a street or bridge, in a tunnel or is double-parked and interferes with the orderly flow of traffic.

6.3.1.2. The vehicle is on a sidewalk, within an intersection, on a crosswalk, in a fire lane, or is blocking a driveway or emergency exit door, so that the vehicle interferes with operations of a facility.

6.3.1.3. In a "tow-away" zone that is so marked with proper signs.

6.3.1.4. The vehicle is unattended in a restricted or controlled area and creating a nuisance or security hazard.

6.3.1.5. The vehicle was used in a commission of a crime or containing evidence of criminal activity will be seized and/or impounded at the discretion of 35 SFS, AFOSI, or NCIS.

6.3.1.6. The vehicle has a serious mechanical issue or is a hazard to others using the public roadways.

6.3.1.7. The vehicle has been involved in a traffic accident and the operator is either unavailable or incapable of having the POV removed.

6.3.1.8. When it is determined that the registered owner has departed Japan on Permanent Change of Station (PCS) orders and there is no Power of Attorney (POA) on file at the 35 SFS/S5PR office, or the existing POA is expired.

6.3.1.9. The vehicle has been used in black market activities.

6.3.1.10. Vehicles may also be impounded when directed by the installation commander, 35 MSG/CC, or 35 SFS/CC.

6.3.2. If, after being cited, the vehicle remains parked in excess of 72 hours in a public parking lot. This includes vehicles listed for sale at a place other than at one's residence (e.g., Bowling Center, Post Office, BX, etc.) or at a place other than the vehicle resale lot operated by the Auto Hobby Shop.

6.3.3. Prior to impounding any vehicle meeting the description in **paragraph 6.3**; 35 SFS will make a reasonable attempt to rectify the situation by contacting the owner and having them move the vehicle within the time constraints set by 35 SFS, as outlined in **paragraph 6.4** If this fails the vehicle will be impounded.

6.3.4. All vehicles in **para 6.3** located off base may be towed and impounded when they are identified as abandoned or Japanese authorities request assistance. 35 SFS/S2I impounds, releases and disposes of all claimed and unclaimed vehicles, IAW AFI 31-115, *Security Forces Investigations Program*, and DoD Manual 4160.21-M, *Defense Materiel Disposition Manual*.

6.4. Impoundment of Abandoned Vehicles. The following procedures apply for towing, searching, impounding, and inventorying abandoned vehicles. All vehicles in **paragraph 6.3**, to include those located off base, may be towed and impounded when Japanese authorities identify them as belonging to SOFA personnel and request assistance.

6.4.1. Procedures:

6.4.1.1. 35 SFS will issue a DD Form 1408, *Armed Forces Traffic Ticket*, and DD Form 2504, *Abandoned Vehicle Notice*, simultaneously when they come in contact with, or are notified of suspected abandoned vehicles. The 35 SFS/S5RA will track these vehicles.

6.4.1.2. The pink copy of the ticket will be placed on the vehicle, along with the DD Form 2504. The violator (owner) will report within 72 hours to the BDOC (depending upon circumstances) and provide proof that the vehicle is not abandoned.

6.4.1.3. Owners will then report to 35 SFS/S5RA office to verify the issue has been resolved. At this time the abandoned vehicle notice and DD Form 1408 will be cleared.

6.4.1.4. When 72 hours have passed and the owner has not reported to 35 SFS/S5RA office, a reasonable attempt to identify and locate the registered owner will be made. If 35 SFS/S5RA is unable to make contact, the vehicle may be towed to MAB's temporary impoundment lot.

6.4.1.5. The DD Form 2504 will be processed by 35 SFS/S2I (One copy will be placed with the vehicle case file and the other copy will be forwarded to the individual's unit). When the registered owner can be identified and is still assigned/located at MAB, the owner and assigned unit will be responsible for disposition of the vehicle within 3 duty days.

6.4.1.6. Contact will be made with the owners assigned or last assigned (if member has departed MAB) unit first sergeant via telephone, email, and/or memorandum informing them of the impounded vehicle and parameters outlined in this instruction. The following procedures apply:

6.4.1.7. 35 SFS/S2I and the towing agency will complete a DD Form 2505, *Abandoned Vehicle Removal Authorization*, prior to vehicle removal. 35 SFS/S2I will witness the vehicle removal process.

6.4.1.8. 35 SFS/S2I will arrange for the vehicle to be towed to the impoundment lot.

6.4.1.9. All due care and caution will be exercised during impoundment actions.

6.4.1.10. Once the vehicle has been impounded for abandonment, an entry will be made in the 35 SFS blotter stating the make, model, year, registration, and/or license number of the vehicle and location from which it was impounded. Impounded vehicles will be thoroughly searched and inventoried via DD Form 2506. 35 SFS/S2I will ensure any valuable personal property found in the vehicle is annotated. If the vehicle is locked, a visual inventory will be done through the window as to not cause damage to the vehicle.

6.4.1.11. If the owner or lien holder is identified, a DD Form 2507, *Notice of Vehicle Impoundment*, and a letter will be forwarded to him/her via certified mail, within 5 duty days, stating their vehicle has been impounded. The owner or lien holder will be advised that if no reply is received by the applicable date (60 days of the date the DD Form 2507 and letter are mailed); the vehicle will be disposed of through a local salvage dealer or other authorized agency. The unit of the assigned owner, while stationed at MAB, is responsible for reimbursing any fees associated with impoundment of the vehicle to include towing and storage. Upon notification, the unit has 14 days to complete the salvage process and reimbursement of all associated fees.

6.4.1.12. The owner or lien holder may claim the vehicle or release it to the government by completing the release on the back of the DD Form 2507. The vehicle will not be moved from the impoundment lot unless all base regulatory requirements are met. Prior to releasing the vehicle, the vehicle owner is responsible for reimbursing any fees associated with impoundment of the vehicle to include towing and storage.

6.4.1.13. If the owner cannot be identified, within 60 days of impoundment and all reasonable attempts have been made to contact the owner, the DD Form 2504 will be annotated and the vehicle will be released to a local salvage dealer or other authorized agency and disposed of IAW AFI 31-115 and DoD Manual 4160.21-M. In this situation, 35 SFS/S5PR will have the authority to deregister abandoned vehicles via the appropriate Land Transportation Office (LTO) and GOJ agencies. All attempts to contact the owner will be made prior to de-registration; however, permission is not required.

6.5. Towing Support. 35 LRS will provide 24-hour towing support (on base only), when requested by SFS, CES/CEF, group commanders, or higher authority to remove a vehicle threatening public safety; a vehicle which interferes with Force Protection Condition Measures (FPCON) measures, security of protection level resources, firefighting operations, and for snow removal operations.

6.5.1. At the request of 35 SFS, 35 LRS will tow disabled vehicles (on base only) when the vehicle presents a roadway safety hazard. 35 LRS will only tow the vehicle to a point where it does not pose a hazard (on base only). It is the owner's responsibility to ensure his/her vehicle is removed from the area within 72 hours or face possible impoundment. The 35 SFS temporary impound lot will only be used for vehicles involved in ongoing investigations, or in cases that require further action by 35 SFS.

6.5.2. 35 LRS tow truck operators are not liable for any damages incurred to any vehicles being towed or removed under these conditions.

6.5.3. Regardless of the type incident, the vehicle operators/owners will always be responsible for all fees associated with impoundment to include any towing and storage fees.

6.6. Retrieving an Impounded Vehicle. The process of retrieving a vehicle is determined on a case by case basis depending on the reason for being impounded:

6.6.1. Vehicles impounded subsequent to a DUI case. The owner is required to deregister the vehicle through 35 SFS/Pass & Registration office based on the revocation of their driving privileges IAW **paragraph 2.6.2.1**.

6.6.2. Vehicles impounded as a result of a vehicle accident are considered evidence and will not be released until the case is completed and approval is granted by 35 SFS/S2I, and 35 FW/JA.

6.6.3. If the vehicle was impounded as a result of possible abandonment, the vehicle will not be released until approval is granted by 35 SFS/S2I.

6.6.4. The vehicle may be driven out of the impound lot if all base regulatory requirements (insurance, registration, safe operating order, etc.) are met. If a vehicle, other than a wrecker, is utilized to tow the vehicle from the impound lot, an "A" "I" or "T" framed tow device or bar will be utilized.

6.6.5. In all cases, a letter signed by the vehicle owner's unit commander, first sergeant, or agency chief is required to retrieve the vehicle.

6.7. Do Not Operate Letter Procedures. The following procedures apply for issuing the Do Not Operate Letter, for violations of failure to maintain JCI, Liability Insurance, or Road Tax.

6.7.1. Procedures: Security Forces will complete the required paper work and the vehicle will be parked in an adjacent/closest parking lot where the violator was stopped depending upon circumstances and patrolman's discretion.

6.7.1.1. If member is unable to drive, Security Forces will request permission to move the vehicle (*NOTE: Security Forces is not liable for any damages). If the vehicle is a safety concern, Security Forces must move the vehicle to a safe location regardless of permission. If the vehicle is not a safety concern and the operator is refusing to give permission for SF personnel to move their vehicle, the vehicle will be towed at the owner's expense. On-scene SF will decide on the location and the vehicle owner will be notified of that location.

6.7.1.2. Security Forces will accomplish the Do Not Operate Letter and identify the exact violation(s). A copy of this letter will be provided to the violator at the time of processing. If the violator is not the owner of the vehicle, 35 SFS/S5RA will attempt to make contact with the owner. Failure to make contact with the owner does not allow the vehicle to be operated.

6.7.1.3. All personal property within the vehicle is the owner's responsibility and Security Forces personnel are not responsible for loss, theft, or damage of any property not removed from the vehicle.

6.7.1.4. 35 SFS/RA will input all vehicles that receive a Do Not Operate Letters into DBIDS and maintain a list of all vehicles on MAB with a Do Not Operate Letter.

6.7.1.5. Once the owner reports to the 35 SFS/S5RA office, they will be given instructions on how to remove their vehicle from the Do Not Operate list.

6.7.1.6. Once the 35 SFS/S5RA office has verified the vehicle is current in JCI, Liability Insurance, and Road Tax, the vehicle will be removed from the Do Not Operate status.

JESSE J. FRIEDEL, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DAFI 31-101, *Integrated Defense (ID), 25 Mar 2020*

AFI 31-115*, Law and Order Operations, 18 August 2020*

AFI 31-218, *Motor Vehicle Traffic Supervision, 22 May 2006, Certified Current 14 Jul 2017*

AFI 33-322, *Records Management and Information Governance Program, 28 July 2021*

AFI 34-219, *Alcoholic Beverage Program, 30 Apr 2019*

AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program, 18 Jul 2018*

AFI 90-802, *Risk Management, 1 Apr 2019*

AFI 91-207, *The US Air Force Traffic Safety Program, 26 Jul 2019*

AFI 13-213_35FWSUP, *Airfield Driving*, *21 Jul 2015*

DoD Manual 4160.21-M, *Defense Materiel Disposition: Disposal Guidance and Procedures, 22 Oct 2015, incorporating change 3, 2 October 2019*

DoDI 6055.04, *DoD Traffic Safety Program*, *31 Aug 2018*

USFJI 31-203, *Law Enforcement Procedures in Japan, 5 Nov 2017*

USFJI 31-205, *Motor Vehicle Operations and Traffic Supervision, 1 Nov 2020*

Prescribed Forms

35FW Form 95EJ, *Local National Vehicle Registration Decal*

35FW Form 97EJ, *Confirmation of Procedures for POV Registration/Transaction*

35FW Form 98EJ, *Provisional Visitor/Vehicle Pass*

35FW Form 119, *Official Vehicle (OV) Plate Request and Approval*

Adopted Forms

AF Form 483, *Certificate of Competency*

AF Form 847, *Recommendation for Change of Publication*

AF Form 2293, *U.S. Government Motor Vehicle Operator's Identification Card*

USFJ Form 4EJ, *U.S. Forces, Japan Operators Permit for Civilian Vehicle*

USFJ Form 15A, *Vehicle Registration Decal* (for Use on 4-Wheel Vehicles)

USFJ Form 15B, *Vehicle Registration Decal*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2505, *Abandoned Vehicle Removal Authorization*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 2507, *Notice of Vehicle Impoundment DBIDS Vehicle Registration Form*

Abbreviations and Acronyms

AFJIS—Air Force Justice Information System

AFOSI—Air Force Office of Special Investigations

BAC—Blood Alcohol Content

BDOC—Base Defense Operations Center

DBIDS—Defense Biometric Identification Data System

DUI—Driving Under the Influence

DWI—Driving While Impaired

FOIA—Freedom of Information Act

FPCON—Force Protection Condition

GOJ—Government of Japan

GOV—Government Owned Vehicle

IDRMP—Integrated Defense Risk Management Process

JCI—Japanese Compulsory Insurance

JNP—Japanese National Police

LTO—Land Transportation Office

MAB—Misawa Air Base

MCAP—Misawa Conduct Adjudication Program

MSF—Motorcycle Safety Foundation

NAF—Naval Air Facility

NAFM—Naval Air Facility Misawa

NCIS—Naval Criminal Investigative Service

OPR—Office of Primary Responsibility

PBT—Portable Breath Test

POA—Power of Attorney

POV—Privately Owned Vehicle

S5RA—Security Force Reports and Analysis

S5PR—Security Forces Pass and Registration

SF—Security Force(s)

SFST—Standardized Field Sobriety Tests

SOFA—Status of Forces Agreement

TAD—Temporary Assignment Duty

TCP—Traffic Control Point

TDY—Temporary Duty

TMO—Travel Management Office

USFJ—United States Forces Japan

Terms

Ability—The physical proximity, coupled with the motor skills to put the vehicle in motion by manipulation of the ignition, gears, and/or release of the emergency brake. A young child being left unattended in a vehicle could have the ability and physical motor skills to release the emergency brake and put a vehicle into motion.

Access—The right and privilege to enter or utilize.

Drunk or Impaired—Any level of intoxication that is sufficient to impair the rational and full exercise of the mental or physical faculties. The term drunk is used in relation to intoxication by alcohol. The term impaired is used in relation to intoxication by other substances other than alcohol.

Installation Entry/Exit Point Checks—Administrative inspections directed by the installation commander designed to protect the readiness, health and welfare of the installation.

Major Accident—An accident that causes a fatality or injuries, the vehicle cannot be moved under its own power or it sustained over $10,000 in damage.

Minor Accident—An accident where no one was injured, sustained less than $10,000 in damages and the vehicle is able to move under its own power.

Moving Violations—Moving violations require the operator to have physical control/operation of the vehicle.

Non-Moving Violations—Non-Moving violations do not require physical control/operation of the vehicle; this includes parking violations, administrative violations, children and/or animals left unattended in a vehicle, or defective equipment. Parking violations, administrative violations, children and/or animals left unattended in a vehicle are assessed points. Defective equipment violations are only assessed points when 72 hours has expired and no proof of repair is provided to BDOC per **Attachment 4**, NOTE 8.

On Base—The areas confined within MAB and the roadway outside Friendship Gate to the first traffic light.

Operate—Operating a vehicle, aircraft, or vessel includes not only driving or guiding a vehicle while it is in motion, either in person or through the agency of another, but also setting of its motive power in action, or the manipulation of its controls so as to cause the particular vehicle to move.

Parked and/or Standing—The vehicle is stationary, with or without the engine running, with or without the operator at the controls. Parked and/or standing vehicles can be legally or illegally parked. For the purpose of enforcement, there is no difference between parked and standing. No vehicle will be left unattended with the engine running, except as exempted in the notes section of **Attachment 4**.

Passenger—Person within the vehicle other than the operator.

Physical Control and Actual Physical Control—These terms are synonymous. They describe the present capability and power to dominate, direct, or regulate the vehicle either in person or through the agency of another, regardless of whether such vehicle is operated. For example, the intoxicated person seated behind the steering wheel of a vehicle with the key in the vehicle in or near the ignition but with the engine not turned on could be deemed in actual physical control of the vehicle. However, the person asleep in the back seat with the keys in his or her pocket would not be deemed in actual physical control. Physical control necessarily encompasses operation.

Reckless Driving—The operation of a vehicle is reckless when it exhibits a culpable disregard of foreseeable consequences to others from the act or omission involved. Recklessness is not determined solely by reason of the happening of an injury, or the invasion of the rights of another, or by proof alone of excessive speed or erratic operation, but all of these factors may be admissible and relevant as bearing upon the ultimate question; whether, under all the circumstances, the manner of operation of the vehicle was of that heedless nature which made it actually or imminently dangerous to occupants, or to the rights or safety of others. It is driving with such a high degree of negligence that if death were caused, the accused would have committed involuntary manslaughter, at least. The condition of the surface on which the vehicle is operated, the time of day or night, the traffic and the condition of the vehicle are often matters of importance in the proof of an offense.

Roadway—A portion of a highway improved, designed, or ordinarily used for vehicular travel, exclusive of the sidewalk, berm, or shoulder even though persons riding bicycles, or other human powered vehicles use such sidewalk, berm, or shoulder. A highway typically includes two or more separate roadways. The term roadway as used herein, shall refer to any such roadway separately, but not to all such roadways collectively. Roadway lanes are identified from the curb to centerline.

Skaters—Individual operating roller skates, roller blades, skateboard and T-handled boards and scooters. Motorized versions of the above including self-balancing scooters (gas or electric powered) are prohibited on MAB roads except for incidental road access associated with pedestrians and will comply with all pedestrian related traffic laws.

Sobriety Checkpoints—Sobriety checkpoints are based on crime trend and traffic enforcement analysis, and are designed to protect the readiness, health, and welfare of the installation. 35 SFS personnel, as augmented by 35 FW units, conduct checks.

U—Turn—Turning a vehicle on a roadway so as to go in the opposite direction whether done by one continuous move or not.

Vehicle—Every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, excepting devices moved by human power or used exclusively upon stationary rails or tracks.

Attachment 2

REQUEST FOR NON-SOFA DRIVING PRIVILEGES

A2.1. Request for Non-SOFA Driving Privileges.

Figure A2.1. Request for Non-SOFA Driving Privileges.

MEMORANDUM FOR 35 SFS/S5PR

FROM: (Rank LAST NAME, FIRST NAME, MI/UNIT/OFFICE SYMBOL)

SUBJECT: Request Issuance of USFJ 4EJ, Base Driving Permit

1. I would like to request issuance of USFJ Form 4EJ Base Driving Permit for (First MI. Last name). He is a citizen of Japan, Passport #0123456789, DOB (DD Mmm YYYY). (Explain reason for request). If approved, this authorization will be valid from (DD Mmm YYYY to DD Mmm YYYY).

Drivers Demographics:
Natural Hair Color – (Color)
Natural Eye Color – (Color)
Current Height – (In inches (e.g., 65”))
Current Weight – (In pounds (e.g., 115lbs))

2. I acknowledge the following:

a. If approved, this letter authorizes attendance to the Base Driving class held every Tuesday at Bldg 653, in room 219 at 0900 hours.

b.. Sponsor assumes sole responsibility to ensure all directives are followed.

c. Member is responsible for maintaining Travelers Health Insurance while on the installation.

3. If you have any questions, please contact me at DP 226-(xxxx)/HP (xxx-xxxx) or the 35th Security Forces Squadron Pass and Registration office at 226-3995.

(FIRST MI. LAST NAME, Rank, USAF)
(Duty Title, Squadron)

NOTE: Text contained within parenthesis must be filled in with the appropriate information. Remove all parenthesis when completed.

Attachment 3

MISAWA TRAFFIC RULES/POINTS/SUSPENSION/REVOCATION TABLE

A3.1. Misawa Traffic Rules/Points/Suspension/Revocation Table.

Table A3.1. Misawa Traffic Rules/Points/Suspension/Revocation Table.

MTR#	Moving Violations	Points	Suspension/Revocation Offenses
MTR-0001	Breaking traction/exhibition of speed	3	N/A
MTR-0002	Driver involved in accident is deemed responsible (only added to points assessed for specific offenses)	1	N/A
MTR-0003	Driving off-base with "on-base only" 4EJ	0	1 Year Revocation
MTR-0004	Driving vehicle in violation of licensing restriction/endorsement (to include lack of motorcycle endorsement on driver's license)	3	30-Day Suspension
MTR-0005	Driving while driver's license or installation driving privileges are under suspension or revocation	6	2-Year Revocation (added on to previous action)
MTR-0006	Driving with an expired license (USFJ Form 4EJ)	3	N/A
MTR-0007	Driving without an issued license (USFJI Form 4EJ) (suspension will begin on the first day they would normally become eligible for a license, if one has not been issued)	3	90-Day Suspension
MTR-0008	Driving without current JCI, liability insurance, or road tax	3	(See Note 5) Subject to Suspension
MTR-0009	Driving without possession of an issued license (USFJ Form 4EJ or stateside license)	3	N/A
MTR-0010	DUI-Driving Under the Influence/GOJ equivalent equating to intoxicated driving (BAC = 0.03% or greater) or under the influence of any narcotic or any other drug to the degree where the driver is impaired	6	1-Year Revocation (P) (See Note 10))
MTR-0011	Failure of operator or occupants to use available restraint system devices while moving (operator assessed points and suspension)	2	30-Day Suspension

MTR-0012	Failure to follow directions of Fire/Police personnel while operating a vehicle	3	30-Day Suspension
MTR-0013	Failure to obey traffic signals/instructions of an enforcement officer or traffic warden; or any official regulatory traffic sign/device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic	4	N/A
MTR-0014	Failure to stop for taxiway crossing light	4	N/A
MTR-0015	Failure to stop for school bus or school–crossing signals	4	30-Day Suspension
MTR-0016	Failure to utilize headlights while operating or riding on a motorcycle, moped, or a three–wheel vehicle powered by a motorcycle–like engine	2	N/A
MTR-0017	Failure to wear an approved helmet and proper PPE (full fingered gloves or mittens, hard-soled over the ankle shoes, long sleeved shirt/jacket and long trousers, eye protection) by operators and passengers. Riders are recommended to wear retro-reflective upper garment at all hours of the day while operating or riding on a motorcycle, moped, or a three or four–wheel vehicle powered by a motorcycle–like engine. Wearing of a tinted visor at night is prohibited	3	30-Day Suspension
MTR-0018	Failure to yield (no official sign involved)	4	N/A
MTR-0019	Failure to yield right of way to emergency vehicle	4	N/A
MTR-0020	Failure to yield to pedestrians in designated walkway/crosswalk	3	N/A
MTR-0021	Failure to yield to pedestrians in designated walkway/crosswalk (in an active school zone)	4	N/A
MTR-0022	Fleeing or attempting to elude police	6	1-Year Revocation (P)
MTR-0023	Fleeing the scene of an accident (personal injury)	6	1-Year Revocation
MTR-0024	Fleeing the scene of an accident (property damage only)	6	180-Day Suspension

MTR-0025	Following too close	4	N/A
MTR-0026	Improper overtaking	3	N/A
MTR-0027	Improper passing	4	N/A
MTR-0028	Improper turning movements (no official sign involved)	3	N/A
MTR-0029	JN traffic fine: speeding on any type of roads 51 KPH over posted speed limit	6	1 Year Revocation
MTR-0030	JN traffic fine: speeding not expressway roads 31 KPH - 50 KPH over posted speed limit	5	30-Day Suspension
MTR-0031	JN traffic fine: speeding not expressway roads 26 KPH - 30 KPH over posted speed limit	4	N/A
MTR-0032	JN traffic fine: speeding not expressway roads 21 KPH - 25 KPH over posted speed limit	3	N/A
MTR-0033	JN traffic fine: speeding on any type of roads 16 KPH - 20 KPH over posted speed limit	2	N/A
MTR-0034	JN traffic fine: speeding on any type of roads 1 KPH - 15 KPH over posted speed limit	2	N/A
MTR-0035	JN traffic fine: speeding on expressway 41 KPH - 50 KPH over posted speed limit	5	30-Day Suspension
MTR-0036	JN traffic fine: speeding on expressway 36 KPH - 40 KPH over posted speed limit	4	N/A
MTR-0037	JN traffic fine: speeding on expressway 30 KPH - 35 KPH over posted speed limit	4	N/A
MTR-0038	National Anthem: failure to stop while US or Japanese anthems are playing	3	N/A
MTR-0039	Noise restrictions: emitting any type of sound/music which can be heard/felt beyond 20 feet from the vehicle	3	N/A
MTR-0040	Operating an unsafe vehicle or in an unsafe manner (i.e., failure to utilize headlights during hours of darkness)	2	N/A

MTR-0041	Operating or riding on a motorcycle, moped, or a three or four–wheel vehicle powered by a motorcycle–like engine outside of the authorized riding season (authorized season: 1 Apr - 15 Nov)	3	N/A
MTR-0042	Operating a motorcycle or moped exceeding size category	3	N/A
MTR-0043	Other moving violations involving driver behavior only (i.e., inattentive driving, improper backing, distracted driving, etc.)	3	N/A
MTR-0044	Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle	6	180-Day Suspension
MTR-0045	Reckless driving (willful/wanton disregard for the safety of persons or property)	6	1-Year Revocation
MTR-0046	Sobriety check point: circumventing or avoiding	6	30-Day Suspension
MTR-0047	Speed contests: participating in a speed contest or race	6	1-Year Revocation
MTR-0048	Speed is too fast for conditions	2	N/A
MTR-0049	Speed is too slow for traffic conditions, and/or impeding the flow of traffic, causing potential safety hazard	2	N/A
MTR-0050	Speeding on MAB 1 to 16 KPH over posted speed limit	3	N/A
MTR-0051	Speeding on MAB 17-24 KPH over posted speed limit	4	N/A
MTR-0052	Speeding on MAB 25-32 KPH over posted speed limit	5	30-Days Suspension
MTR-0053	Speeding 33 KPH or more over posted speed limit, reckless driving	6	1-Year Revocation
MTR-0054	Speeding: school zone violation enhancement	(See Note 11)	Enhanced Points Assessment and Subject to Suspension (See Note 11)
MTR-0055	Unauthorized carrying of passengers on two-wheeled vehicle (operator assessed points and suspension)	2	30-Day Suspension
MTR-0056	Use of a motor vehicle in commission of a felony	6	1-Year Revocation

MTR-0057	Use of cellular phone or portable electronic device (i.e., GPS, iPod, etc.) while operating a motor vehicle (these devices must be hands free) on base	3	First Offense 30-Days Subsequent Violations: 180-Days (See Note 12)
MTR-0058	Vehicle lighting/turn signals: non-operational or not working as intended	2	(See Note 8)
MTR-0059	Vehicle modification: operating motor vehicle with its length, width, or height exceeding those designated on the current inspection certificate. Height adjustments or fender flares on 52, 53, 54, 58, 77, 78, 500, 501, 502 plate series	2	(See Note 8)
MTR-0060	Vehicle standards: vehicle not operated in compliance with the manufacturer's operating standards; lighting, braking, steering, or safety systems non-operational or not meeting all of the manufacturer's standards. Modifications to vehicles not meeting or exceeding the manufacturer's standards	2	(See Note 8)
MTR-0061	Wearing of headphones/earphones while driving a motor vehicle (Bluetooth devices for hands-free cell phone usage are exempt)	3	N/A
MTR-0062	Use of cellular phone or portable electronic device (i.e., GPS, iPod, etc.) while operating a motor vehicle (these devices must be hands free) off base	3	N/A
MTR#	**Non-Moving/Parking Violations**	**Points**	**Suspension/Revocation Offenses**
MTR-0063	Abandoned vehicle	3	(See Note 8)
MTR-0064	Child restraint system used/installed improperly	2	N/A
MTR-0065	Child safety seat requirements: child under 4 years of age and any child less than 50 pounds (regardless of age), ages 4 through 7, weighing over 50 pounds and less than 4 feet 9 inches; ages 8 and above and no less than 4 feet 9 inches in height will be secured in an appropriate child restraint system or booster seat	4	30-Day Suspension for Driver (See Note 9)
MTR-0066	Failure to have proper equipment on two-wheel vehicle (i.e., two rear-view mirrors)	2	N/A

MTR-0067	Failure to maintain current JCI, liability insurance, or road tax	(See Note 4)	Subject to Suspension (See Note 4)
MTR-0068	Failure to report an accident immediately on base (applies to drivers or owners of a vehicle involved in an accident)	3	30-Day Suspension
MTR-0069	Failure to report an accident immediately off base (applies to drivers or owners of a vehicle involved in an accident)	3	30-Day Suspension
MTR-0070	False statements: making a false statement to responsible officials relating to the ownership or operation of a motor vehicle	6	1-Year Revocation
MTR-0071	Fluids such as gasoline, oil, coolant and other operating fluids leaking from the vehicle	2	(See Note 8)
MTR-0072	GOJ Road Tax decal: failure to display required decal: GOJ/Road Tax decal (USFJ Form 15); displaying more than one decal	2	(See Note 3)
MTR-0073	Improper registration (fraudulent tags)	6	N/A
MTR-0074	JN traffic fines: failure to pay by suspense	0	30-Day Suspension
MTR-0075	License plates: covered or failure to mount so that they are not obscured, covered, or tilted; failure to have front and rear plates; failure to securely fasten plates	2	(See Note 8)
MTR-0076	Major vehicle maintenance: conducted in military family housing or the dormitory parking lots. Vehicle lifted by unapproved devices, with safety equipment in place to perform minor maintenance. Lifted vehicles left unattended	2	(See Note 8)
MTR-0077	Misuse of handicap decal	3	N/A
MTR-0078	Offensive material: applied/painted or affixed to motor vehicle	2	N/A
MTR-0079	Open alcohol container in passenger cabin of vehicle and readily accessible to the driver or passengers while in their seats	3	30-Day Suspension
MTR-0080	Parking: against direction of sign and/or device	2	N/A
MTR-0081	Parking: against the flow of traffic	2	N/A

MTR-0082	Parking: area not designated as a parking area (i.e., not between two marked lines)	2	N/A
MTR-0083	Parking: beyond 12 inches from curb/road edge	2	N/A
MTR-0084	Parking: beyond time limit	2	N/A
MTR-0085	Parking: blocking driveway/entrance/exit	2	N/A
MTR-0086	Parking: during snow removal period (sign)	2	N/A
MTR-0087	Parking: in excess of 72 hours; violation applies when parking in a shared parking lot (i.e., dormitory, AAFES) and/or the vehicle is interfering with other parking spots/flow of traffic	2	(See Note 14)
MTR-0088	Parking: in handicapped parking space (no decal or placard displayed)	3	N/A
MTR-0089	Parking: in no parking area (sign)	2	Subject to 30 Day Suspension (See Note 13)
MTR-0090	Parking: in reserved parking space	2	N/A
MTR-0091	Parking: obstructing the flow of traffic	2	N/A
MTR-0092	Parking: on a sidewalk	2	N/A
MTR-0093	Parking: unattended motor running	3	(See Note 2)
MTR-0094	Parking: with key in vehicle unattended	2	(See Note 2)
MTR-0095	Parking: within 15 feet of a crosswalk	2	N/A
MTR-0096	Parking: within 15 feet of an intersection	2	N/A
MTR-0097	Parking: within 15 feet of fire hydrant	2	N/A
MTR-0098	Parking: within 20 feet of a fire station entrance/exit	2	N/A
MTR-0099	Parking: within 30 feet of school bus stop	2	N/A
MTR-0100	Parking: within fire lane	2	N/A

MTR-0101	Radar detection device: device mounted or in use	3	N/A
MTR-0102	Radar detection device: device mounted or in use in a school zone	4	N/A
MTR-0103	Receive 12 points or more in a 1-year period	0	180-Day Suspension
MTR-0104	Receive 18 points or more in a 2-year period	0	180-Day Suspension
MTR-0105	Refusal to comply with a random antiterrorism measure/base entry point inspection	6	30-Day Suspension
MTR-0106	Refusal to comply with the Standardized Field Sobriety Test	0	1 Year Revocation (P)
MTR-0107	Rent/lend a SOFA status vehicle to non-SOFA status operator	4	(See Note 6)
MTR-0108	Seat belts not in working order	2	(See Note 8)
MTR-0109	Tinted windows: vehicle windows having a tint on the windshield and driver's or passenger's front door window	2	(See Note 8)
MTR-0110	Tires: failure to maintain 1/16 of an inch of tread, with no defects	2	(See Note 8)
MTR-0111	Traction control devices (15 Nov – 31 Mar or winter months as directed by installation commander): failure to use proper traction devices (four snow tires or all weather tires)	3	N/A
MTR-0112	Child under the age of 7 (animals are included if danger exists to the animal) left unattended in a vehicle: all cases will be referred to Family Advocacy and unit commander for military members or MCAP for civilians/dependents. Consult SJA for further guidance	6	(See Note 7)
MTR-0113	Child between the ages of 7 and 9 (animals are included if danger exists to the animal), left unattended in a vehicle for greater than 15 minutes, without keys removed, or failure to apply handbrake: all cases will be referred to Family Advocacy and unit commander for military members or MCAP for civilians/dependents. Consult SJA for further guidance	6	(See Note 7)

MTR-0114	Child between the ages of 10 and 11 (animals are included if danger exists to the animal), left unattended in a vehicle without keys removed, or failure to apply handbrake: all cases will be referred to Family Advocacy and unit commander for military members or MCAP for civilians/dependents. Consult SJA for further guidance	6	(See Note 7)
MTR-0115	Unsafe vehicle/load	2	(See Note 8)
MTR-0116	Use of dash cameras or other video recording devices	3	N/A
MTR-0117	Vehicle body parts, to include bumpers, not permanently affixed	2	(See Note 8)
MTR-0118	Vehicle exhaust: non-operational, extending past the rear bumper, or discharge exhaust emission left, right, or downward. The exhaust pipe not extending to the rear and at more than a 30-degree angle from a perpendicular line. Muffler lower than 9 centimeters to the ground	2	(See Note 8)
MTR-0119	Vehicle exhaust: emitting excessive exhaust, smoke, or noise	2	(See Note 8)
MTR-0120	Vehicle registration: failure to register/deregister	6	N/A
MTR-0121	Vehicle seats not designed for automobile use or not permanently attached in the proper location	2	(See Note 8)
MTR-0122	Vehicle windows/windshields: failure to maintain as operational/free of defects	2	(See Note 8)
MTR-0123	Windshield wipers: non-operational or unable to clear precipitation from the windshield	2	(See Note 8)
MTR-0124	Winter operations: failure to comply with snow removal operations/signs	3	N/A
MTR-0125	Winter operations: snow and ice must be cleared from the vehicle windows, hood, roof, and trunk area	3	N/A

NOTEs:

1. Emergency response vehicle are exempt from parking violations when responding to an incident.

2. During winter periods, vehicles may be left running unoccupied outside of personal residence or personal work center for no more than 20 minutes to warm up the engine prior to operating. Operators are responsible to ensure vehicles are secured at all times when they are not with the vehicle. Vehicle operators are prohibited from leaving a vehicle running while entering a facility to conduct business (i.e., stopping at the Shoppette, Post Office, etc.).

3. Current year USFJ Form 15 A/B must be displayed by 1 June.

4. Failure to maintain current JCI, liability insurance, or road tax. Owner will receive:

a. Do Not Operate Letter (for vehicle)

b. 180 days or greater: 6 points and 180-day suspension

c. 179 days or less: 3 points and suspension until JCI, liability insurance, and road tax are current

NOTE: If an owner was officially out of the area, those day will be subtracted from total days expired. It is the owner's responsibility to provide proof of the official function, leave does not count as an official function.

5. Driving without current JCI, liability insurance, or road tax. Vehicle operator (other than owner) will receive:

a. Do Not Operate Letter (for vehicle)

b. Regardless of time expired: 3 points

6. Does not apply if requirements in USFJI 31-205 para 2.2.5. are met.

7. If children or animals were left in dangerous conditions in vehicle, i.e., in hot weather where interior temperatures may reach dangerous levels, keys left accessible to children or where conditions are deemed hazardous by a reasonable person. An AF Form 3545 will also be accomplished.

8. Two (2) points will only be assessed for vehicle equipment violations if the operator/owners fail to correct the discrepancy within 72 hours.

9. Applies to not using or when child restraint system is improperly installed, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer), etc.

10. The (P) symbol indicates the violator will be issued a Preliminary Suspension by Security Forces at the time of the incident. The suspension will take effect immediately and stay in effect until final disposition by the 35 MSG/CC.

11. School zone violation enhancement suspension penalties:

a. Speeding 1-9 KPH over posted speed limit: 1 extra point added to speeding offense

b. Speeding 10-16 KPH over posted speed limit: 1 extra point and 30-day Suspension

c. Speeding 17+ KPH over posted speed limit: 1 extra point and 60-day Suspension

12. Emergency vehicle operators are exempt when cell phone use is in the performance of official duties. Vehicle operators will not use cellular telephones (including sending and receiving text messages), two-way radios, handheld electronic devices, watch television, or have other similar equipment turned on within their eyesight while operating a motor vehicle. **NOTE:** Hands free devices/ear pieces, for use with cellular phones is authorized.

13. Any vehicle parked without authorization in an area restricted due to force protection measures may subject driver to immediate suspension. Vehicle will be towed at the owner's and/or operator's expense.

14. 72 hour limit does not apply to legally parked vehicles in military housing tower parking lots or designated visitor parking slots.

15. If vehicle operator departed accident scene/location without making contact with property owner IAW USFJI 31-205 paragraph 4.5.2, also charge with MTR 23/24 as appropriate.

Attachment 4

ADMINISTRATIVE REVIEW REQUEST

A4.1. ADMINISTRATIVE REVIEW REQUEST

Figure A4.1. Administrative Review Request.

MEMORANDUM FOR 35 FW/CV

FROM: (Individual Who Received the Suspension)

SUBJECT: Administrative Review Request

1. The individual must indicate all the reasons for discussing the length, cancellation or extenuating circumstances of the suspension. This memorandum and suspension letter will be processed by 35 SFS/S5RA and sent to the 35 FW/CV for action.

2. After receiving action from the 35 FW/CV, 35 SFS/S5RA will notify the unit CCF of the appeal authority's final determination.

3. Please note the letter must be written in this format. If you have further questions, please contact 35 SFS/S5RA at 226-2241.

(Requestor's Signature Block)
(Duty Title)

1st Ind, (Unit Commander, Date)

MEMORANDUM FOR 35 FW/CV

Concur/Non-concur.

(Unit Commander)
(Signature Block)

NOTE: text contained within parenthesis must be filled in with the appropriate information. Remove all parenthesis when completed.

Attachment 5

REINSTATEMENT OF DRIVING PRIVILEGES

Figure A5.1. Reinstatement of Driving Privileges.

MEMORANDUM FOR 35 SFS/S5RA

FROM: (Unit CC/CCF)

SUBJECT: Reinstatement of Driving Privileges

1. Request the driving privileges of (SSgt John A. Doe) be reinstated IAW 35 FWI 31-218, para 2.10. The member has completed the following requirements for reinstatement:

a. Course V, Driver Improvement Course, Date:(_____). (Required for all violations)

b. Alcohol Drug Abuse Prevention Treatment (ADAPT) program, Date:(_____). (Only if suspension involved drinking or substance abuse. If not, remove this paragraph).

2. If you have any questions, please contact (XXX) at DSN 226-(XXXX).

(Unit Commander)
(Signature Block)

NOTE: text contained within parenthesis must be filled in with the appropriate information or removed as appropriate (e.g., “Required for all violations” can be removed). Remove all parenthesis when completed.

Attachment 6

POV RESTRICTED DRIVING PROPOSAL

A6.1. POV Restricted Driving Proposal.

Figure A6.1. Restricted Driving Proposal.

MEMORANDUM FOR (Unit CC/CCF)

FROM: 35 MSG/CC

SUBJECT: POV/GOV Limited Driving Privelages Approval

1. In reference to

2. Privelages are granted for the following areas:

3. These privelages will be withdrawn and the original suspension or revocation action contiuned sohould you violate these restrictions, be found at fault in a traffic accident, or cited for a moving violation.

(35 MSG/CC)
(Signature Block)

NOTE: text contained within parenthesis must be filled in with the appropriate information or removed as appropriate (e.g., “Required for all violations” can be removed). Remove all parenthesis when completed.

Attachment 7

GOV RESTRICTED DRIVING PROPOSAL

Figure A7.1. Request for Limited POV/GOV Driving Privileges.

MEMORANDUM FOR 35 SFS/S5RA

FROM: (Individual Who was suspended)

SUBJECT: Request for Limited POV/GOV Driving Privileges for (Rank, Last, First, MI, Unit)

1. Request restricted driving privileges for the following reason:

a. Family Hardship or Mission Essential: Provide justification for limited driving if applicable. All requests must into one of these two categories for approval.

b. If authorized, I will use the following vehicle: (Ex: 1988 white Mazda four-door, license plate number H XXX Y XXXX.)

c. Route of Travel: From the member's residence (bldg xxx) to work (bldg xxxx). The only authorized stops will be base schools (if applicable), main base gas station, and the base hospital for emergency purposes only.

2. I have completed Course V through 35 FW/SE, and the substance abuse alcohol program (if applicable).

3. My license has not been revoked or suspended by State, Federal or Japanese authorities.

4. If you have any questions please contact me at (xxx-xxxx).

(Requestor's Signature Block)
(Duty Title)

1st Ind, (Unit Commander, Date)

MEMORANDUM FOR 35 SFS/S5RA

Concur/Non-concur.

(Unit Commander)
(Signature Block)

NOTE: text contained within parenthesis must be filled in with the appropriate information or removed as appropriate (e.g., “Required for all violations” can be removed). Remove all parenthesis when completed.

Attachment 8

REBUTTAL OF TRAFFIC TICKET FORMAT

A8.1. Rebuttal of Traffic Ticket Format.

Figure A8.1. Rebuttal of Traffic Ticket Format.

MEMORANDUM FOR 35 SFS/CC

FROM: (Individual Who Received Traffic Ticket)

SUBJECT: Rebuttal of Traffic Ticket

1. The violator must draft a memorandum specifically citing evidence that disproves the validity of the ticket within 14 calendar days of receipt of the citation. Additionally, they must notify S5RA of their intent to rebut within 5 duty days of issuance of the citation. The memorandum must be submitted to 35 SFS/S5RA for processing.

2. Please note the letter must be written in this format. If you have further questions, please contact 35 SFS/S5RA at 226-2241.

(Requestor's Signature Block)
(Duty Title)

1st Ind, (Unit Commander, Date)

MEMORANDUM FOR 35 SFS/S5RA

Concur/Non-concur.

(Unit Commander)
(Signature Block)

NOTE: text contained within parenthesis must be filled in with the appropriate information or removed as appropriate (e.g., "Required for all violations" can be removed). Remove all parenthesis when completed.

Attachment 9

DO NOT OPERATE MEMORANDUM

A9.1. Do Not Operate Memorandum.

Figure A9.1. Do Not Operate Memorandum.

MEMORANDUM FOR OWNER OF VEHICLE: (Vehicle License Plate)

FROM: 35 MSG/CC

SUBJECT: Do Not Operate Letter

1. This letter is intended to notify the owner of vehicle license plate: (_____) that they are no longer authorized to operate their vehicle due to not meeting Japan Compulsory Insurance (JCI), Liability Insurance, and/or Road Tax standards. IAW USFJI 31-205, Motor Vehicle Operations & Traffic Supervision, paragraph 3.7.1., each privately owned motor vehicle, including official vehicle (OV)-plated vehicles and all two-wheeled vehicles regardless of engine displacement, will have JCI required by the Japan Motor Vehicle Damage Compensation Guaranty Law, Law No. 97, 1955 as amended. Additionally, vehicle owners must secure and maintain coverage of no less than ¥30,000,000 (about$300,000) for bodily injury and ¥3,000,000 (about $30,000) for property damage as a condition precedent to permanent or temporary registration with Provost Marshal authorities.

2. Additionally, USFJI 31-205, paragraph 3.7.3., states U.S. Forces personnel will not operate privately owned vehicle and rental vehicles unless the insurance specified in paragraph 3.7.1. is in effect. This restriction also applies to rental cars authorized for use by service component instructions. 35 FWI 31-218, Motor Vehicle Traffic Supervision, paragraph 6.7., also applies Do No Operate standards if a vehicle owner fails to maintain proper Road Tax.

3. Vehicle License Plate Number: (_____)
   JCI Expiration Date: (_____)
   Liability Insurance Expiration Date: (_____)
   Road Tax Expiration Date: (_____)

4. A vehicle that is placed on Do Not Operate will be afforded due process. You may request your vehicle be removed from Do Not Operate status by going to the 35th Security Forces Squadron Reportsand Analysis section (35 SFS/S5RA).

5. To have a vehicle removed from the Do Not Operate status you must report to the 35 SFS/S5RA with proof of current JCI and Liability Insurance and/or proof of temporary plate and Liability Insurance.Once the 35 SFS/S5RA has verified the vehicle is current in JCI and Liability Insurance it will beremoved from the Do Not Operate status.

6. Driving a vehicle in violation of an imposed Do Not Operate will result in driving privileges being revoked up to 2 years. (Unit Commander) (Signature Block)
NOTE: text contained within parenthesis must be filled in with the appropriate information or removed as appropriate (e.g., "Required for all violations" can be removed). Remove all parenthesis when completed.

Attachment 10

PRELIMINARY SUSPENSION OF DRIVING PRIVILEGES

A10.1. Preliminary Suspension of Driving Privileges.

Figure A10.1. Preliminary Suspension of Driving Privileges.

MEMORANDUM FOR: (Rank, Last, First, MI/SSN)

FROM: 35 MSG/CC

SUBJECT: Preliminary Suspension of Driving Privelages

1. Your driving privileges are immediately suspended pursuant to IAW USFJI 31-205, AFI 31-218, and 35 FWI 31-218. The final disposition on this suspension will be determined by the 35th Mission Support Group Commander (35 MSG/CC) or 35th Fighter Wing Vice Commander (35 FW/CV) and could result in the permanent revocation of the driving privileges described in this notice. This is the only notice you will receive of this preliminary suspension.

2. This suspension is reciprocal for all USFJ installations. IAW USFJI 31-205. You are not allowed to drive any motor vehicle, including those licensed and registered under the Status of Forces Agreement (SOFA) or Government Owned Vehicle (GOV) during the duration of the suspension/revocation. If the 35 MSG/CC or 35 FW/CV's final determination upholds the suspension/revocation, your driving privileges will be terminated. Any preliminary suspension time served will be deducted from the overall mandated suspension/revocation. USFJI 31-205, paragraph 3.7.3., states U.S. Forces personnel will not operate privately owned vehicle and rental vehicles unless the insurance specified in paragraph 3.7.1. is in effect. This restriction also applies to rental cars authorized for use by service component instructions. 35 FWI 31-218, Motor Vehicle Traffic Supervision, paragraph 6.7., also applies Do No Operate standards if a vehicle owner fails to maintain proper Road Tax.

3. If you are a non-SOFA status member, your driving privileges on all USFJ installations are suspended. If you have SOFA status, your driving privileges are suspended on all USFJ installations and off base.

4. Your driving privileges are immediately suspended for the following:

a. Driving Under the Influence (DUI)/ Intoxicated Driving. Blood Alcohol Content (BAC) is 0.03% or higher, or driving under the influence of any narcotic or any other drug to the degree where the driver is rendered incapable of safe vehicle operation.

b. Refusal to submit to a lawfully requested test contents of blood, breath, and/or urine for alcohol or other drugs (BrAC or BAC).

c. Fleeing or attempting to elude police.

5. Personnel who commit violations that result in a loss of driving privileges will be afforded due process. After acknowledgment of the final disposition regarding your driving privileges made by the 35 MSG/CC, you may request an administrative hearing with the 35 FW/CV regarding your suspension/revocation. Your written request must be received by 35th Security Forces Squadron Reports and Analysis section (35 SFS/S5RA) within 14 calendar days after you receive the final notice of suspension/revocation from the 35 MSG/CC. IAW 35 fwi 31-218. Late requests will not be accepted. 35 SFS/S5RA will coordinate with the 35 FW/CV to schedule a hearing. Preliminary suspensions will remain in effect during the administrative review/appeal process. If exonerated of the aforementioned offense, driving privileges may be restored. If not, your driving privileges will remain suspended/revoked for the length of time mandated. IAW 35 FWI 31-218.

6. Driving in violation of an imposed suspension or revocation will result in driving privileges being revoked for an additional two years, and will run consecutively with the original suspension/revocation.

(35 MSG/CC)
(Signature Block)

1st Ind, (Apprehendee, Date)

MEMORANDUM FOR 35 MSG/CC

I CERTIFY I HAVE READ THIS MEMORANDUM, RECEIVED A COPY, AND UNDERSTAND ITS CONTENTS. I UNDERSTAND MY DRIVING PRIVILEGES ARE IMMEDIATELY SUSPENDED. I may direct any questions I have regarding this memorandum to 35 SFS/Reports and Analysis (Bldg 656, Rm 1126/1124, Hours: 0730 - 1630) at 226-2241/2293. For further guidance, refer to USFJI 31-205, AFI 31-218, and 35 FWI 31-218.

(Apprehendee)
(Signature Block/Date)

(Security Forces Representative)
(Signature Block)

NOTE: text contained within parenthesis must be filled in with the appropriate information or removed as appropriate (e.g., “Required for all violations” can be removed). Remove all parenthesis when completed.